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BY PHYSICS WALLAH

UPSC PRARAMBH

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Indian Polity



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Lecture -01

Introduction of Indian Polity



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Introduction of Indian Polity



Outline of Lecture

- ❖ Democracy
- ❖ Prerequisites/Features of Democracy
- ❖ Bill of Rights
- ❖ Fundamental Rights

Democracy:

❖ Definition:

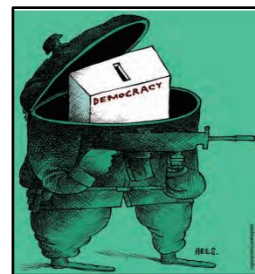
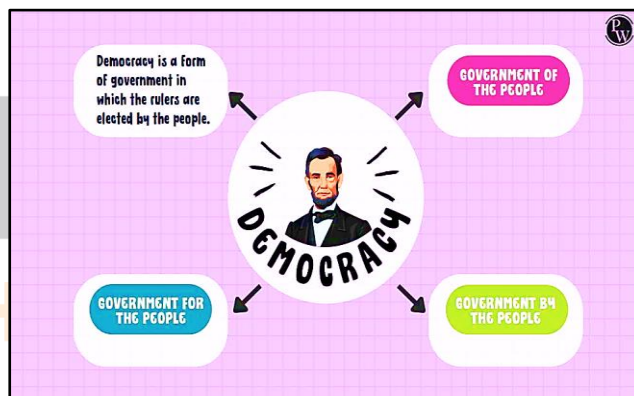
➤ “Democracy is a form of government in which rulers are elected by people.”

- ✓ In India, people elect their rulers (Government) through election.
- ✓ All those people who are above 18 years of age can cast their vote in the election.

➤ Abraham Lincoln said, “Democracy is of the people, for the people, and by the people.”

➤ The government works for the people, that's why the term “Janta Janardhan” is used in India.

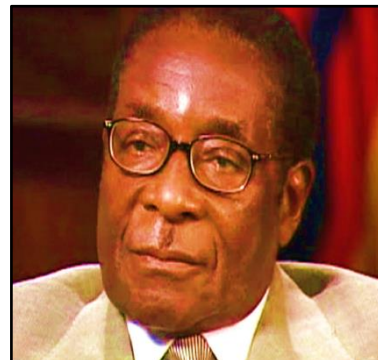
- ❖ **Example:** In Pakistan, General Parvez Musharraf was the elected President and claimed that Pakistan was a democracy. However, the Government of Pakistan was heavily influenced by General Parvez Musharraf and military officials or the army of Pakistan. Thus there was a dictatorship in Pakistan even though the rulers were elected (same situation in Myanmar now). This shows that a country cannot be called a democracy truly on the basis of elections.



Prerequisites / Features of Democracy:

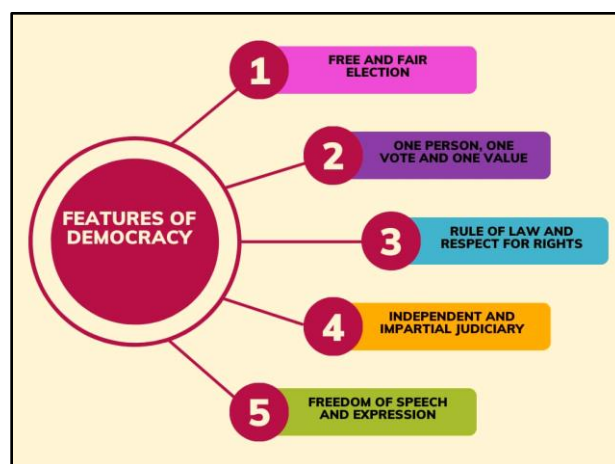
❖ Free and Fair Elections:

- It means the election is free of force or cheating.
- Example:
 - ✓ Robert Mugabe was the President of Zimbabwe. He was a true dictator as he conducted the elections (to show the world) but the elections were not fair as no rights were given to the opposition parties during or after the elections (not able to conduct rallies, etc.). Thus, Zimbabwe was not a democracy even though elections were conducted there.
- ✓ In China, only members of the Communist Party are allowed to contest the elections. But there is no such provision in India.
- The ruling government gives an equal chance to all the contesting parties to participate in the elections.
- So, democracy must be based on a free and fair election where those currently in power have a fair chance of losing.



❖ One Person, One Vote, and One Value:

- In a democracy, each adult citizen must have one vote and each vote must have one value (even if he is a Prime Minister or a rickshaw puller).
- Example:
 - ✓ During British rule in India, people got voting rights on the basis of their level of education, property, etc.
 - ✓ Earlier in many countries females were not given voting rights.
- The Election Commission of India conducts the elections in India.



- *Universal Adult Suffrage/Franchise* means all those persons who are above 18 years of age have the right to vote in the elections of India.

❖ *Rule of Law and Respect for Rights:*

- *Everyone is equal in the eyes of the law of the land.*
- *Example: In China, the members of the Communist Party are given special privileges in front of the law or judiciary.*
- *The state should respect the basic rights of the citizens. It implies that the rights of all people should be respected by the government and the other people.*

❖ *Independent and Impartial Judiciary:*

- *In a democracy, the judiciary makes decisions according to the law of the land and is not influenced by the government.*
- *The judiciary treats everybody equally whether the person is rich or poor.*

❖ *Freedom of Speech and Expression:*

- *Everyone has the right to freedom of speech and expression and the right to criticize the government while behaving responsibly and respecting other people's rights.*
- *Example: Jack Ma, the founder of Alibaba.com disappeared from the public eye after he criticised the Chinese government.*
- *Thus, China and Russia are not true democracies but India is a true democracy.*

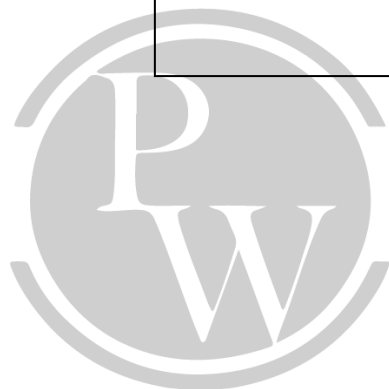
- ❖ *India is a true democracy because all the essential features of democracy are present in our country*



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Lecture -02

Democracy



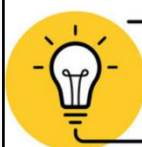
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Democracy



Outline of Lecture

- ❖ Democracy
 - Arguments against Democracy
 - Arguments in favor of Democracy
 - Outcomes of Democracy



DID YOU KNOW?

Unity in Diversity in India:

- ❖ India is a diverse country having different cultures, languages, races, etc. But there is **unity in diversity** here. The thread which binds all Indians together is known as “Unity in Diversity”.
- ❖ The term “Unity in diversity” is defined as the **spirit of brotherhood without any discrimination**. It implies the feeling of oneness or togetherness even after having a lot of diversity.
- ❖ Diversity can be in the form of religion, color, caste, creed, cultural practices, etc. In our country, these diversified traits are used as a symbol of harmony and unity among people belonging to different religions or cultural backgrounds.



Unity vs Uniformity:

- ❖ Unity is different from uniformity. **Uniformity** is the state of being uniform and **holding the same views, beliefs, standards, ethics, etc.** Uniformity means everything is alike and mostly it is **imposed from outside**. **Example:** The same school dress for children of a particular school is an example of uniformity. That is, when things are uniform, everything or everyone looks alike – there are no differences.

- ❖ *Unity refers to the union or harmony of a group of people. Unity can also refer to qualities such as togetherness, harmony, and integrity of a group. Whereas unity is when everything is alike but it comes internally and is not imposed from outside. National unity refers to the harmony between different sections of people in a country. Example: Indians feeling happy when they win the World Cup is an example of Unity because it reflects the union of the citizens of our country.*



Unity vs. Uniformity

Parliament and MPs:

- ❖ Parliament has two parts:
 1. Rajya Sabha
 2. Lok Sabha (upcoming elections in 2024)
- ❖ The members of Lok Sabha and Rajya Sabha are called MPs (Members of Parliament).



State Legislative Assembly and MLAs:

- ❖ Every State has a State Legislative Assembly or Vidhan Sabha. The members of State Legislative Assemblies are called MLAs (Members of Legislative Assemblies).



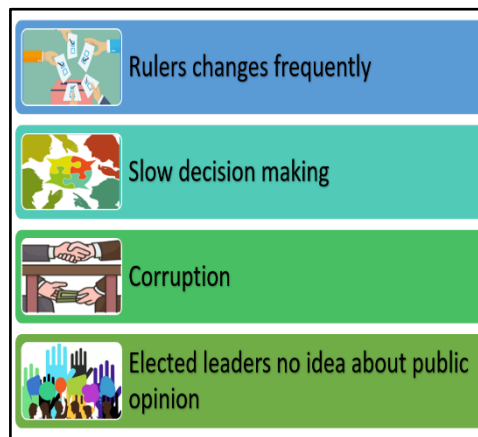
Women's Suffrage Movement:

- ❖ It was a movement carried out in several countries to fight for the right to vote for women.

Cons of Democracy/ Arguments Against Democracy:

❖ Rulers Change Frequently:

- Since the elections are held regularly the leaders keep changing in the Democracy when the other party wins the election. This leads to **political instability**.
- Sometimes this can set back big decisions and affect the government's efficiency.



❖ Slow Decision Making:

- The decision-making process in democracy is slow as **consensus building** involves **multiple rounds of debates** that take place before a final decision. These deliberations and negotiations delay the process of decision-making.

❖ Corruption:

- Another drawback of democracy is that it can lead to corruption since it is based on **electoral competition**.
- The politicians may be tempted to use their power for personal gain, rather than serving the interests of the people.
- Democracy is all about power play and political competition. Hence, there is no scope for morality in Democracy

❖ Elected Leaders have No Idea about Public Opinion:

- The Government representatives end up making bad decisions as they **do not understand what decision is in the best interest of the people**.
- The leaders lack the desire or the skills to participate in decision-making effectively.

Pros of Democracy/ Arguments in Favour of Democracy:

❖ Accountability:

- Accountability means **holding the actor responsible for his decisions**.
- In a democracy, the **government is accountable to the people**.

- The government remains fearful of democracy as there are chances that the citizens will remove them in the next election by voting against them (if the government doesn't listen to their demands).

- **Example:** The common people in India ask the government to build the road again as there are many potholes because people expect the

government to work for their welfare. Thus, the government is accountable and responsive to the needs and expectations of the citizens.



❖ Quality Decision Making:

- The decisions in a democracy are taken through **wider consultation, discussion, and deliberation with various stakeholders including the common people.**
- When a number of people put their heads together, they are able to point out possible mistakes in any decision. This takes time. But there is a big advantage in taking time for important decisions.
- This reduces the chances of rash or irresponsible decisions. Also, its decisions may be both more acceptable to the people and more effective.
- **Example:** Bills open for public scrutiny before they are introduced in the Parliament of India to incorporate public opinion in a constructive manner.

❖ Conflict Resolution:

- In democracy, the conflicts are resolved easily as the decisions are taken keeping in mind the interests of the public at large. **Democracy is a system of conflict management** because it allows for the resolution of conflicts through competition in electoral and legislative arenas.

❖ Dignity of Citizens:

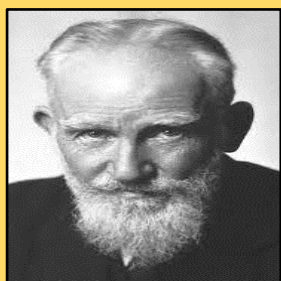
- In a democracy, the dignity of citizens is maintained due to the **presence of an independent and impartial judiciary.**
- People are not subjects of a ruler, they are the rulers themselves. Even when they make mistakes, they are responsible for their conduct.

➤ **Example:**

- ✓ The citizens of India can't be subjected to arbitrary arrest or detention as they can approach the Indian Judiciary for the violation of their rights. Thus, democracy enhances the dignity of citizens by protecting them against unlawful processes. But in China, it is quite possible (Jack Ma, the founder of Alibaba.com, was arrested arbitrarily by the Chinese Government after he criticized the government. This shows the lack of dignity of citizens.).
- ✓ Equality of citizens
- ✓ Rule of law

Citizen:

- ❖ A citizen is an individual who has been given certain **rights** guaranteed by the Constitution. **Example:** Freedom of speech and expression.
- ❖ The individual also has to perform certain **duties** towards the State. **Example:** Respect for the National Flag and National Anthem of India.



Democracy in the words of George Bernard Shaw:

- ❖ "Democracy is a device which ensures that we are getting no better than we deserve."



Question to ponder upon:

Why do we call democracy better than other forms of Government?

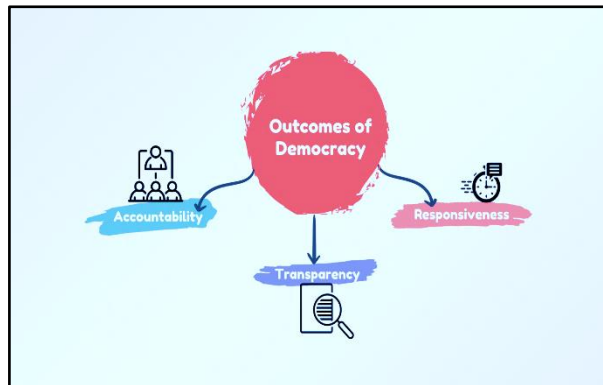
Answer: Write about the pros and outcomes of democracy.

Outcomes of Democracy:

❖ Accountability:

➤ The government is accountable to its citizens for its actions.

➤ **Example:** The redevelopment project in Dharavi (the largest slum in Asia) is an example of accountability because the government is entrusted with the responsibility of taking care of people's needs and working with dedication through the development of electricity, roads, through the provision of housing, employment, health, education, etc.



❖ Transparency:

➤ The government shares information with the public and the decisions are taken through wider consultation.

➤ **Example:** The Right to Information Act was enacted in India to empower the citizens, promote transparency and accountability in the working of the Government, and make our democracy work for the people in a real sense

❖ Responsiveness:

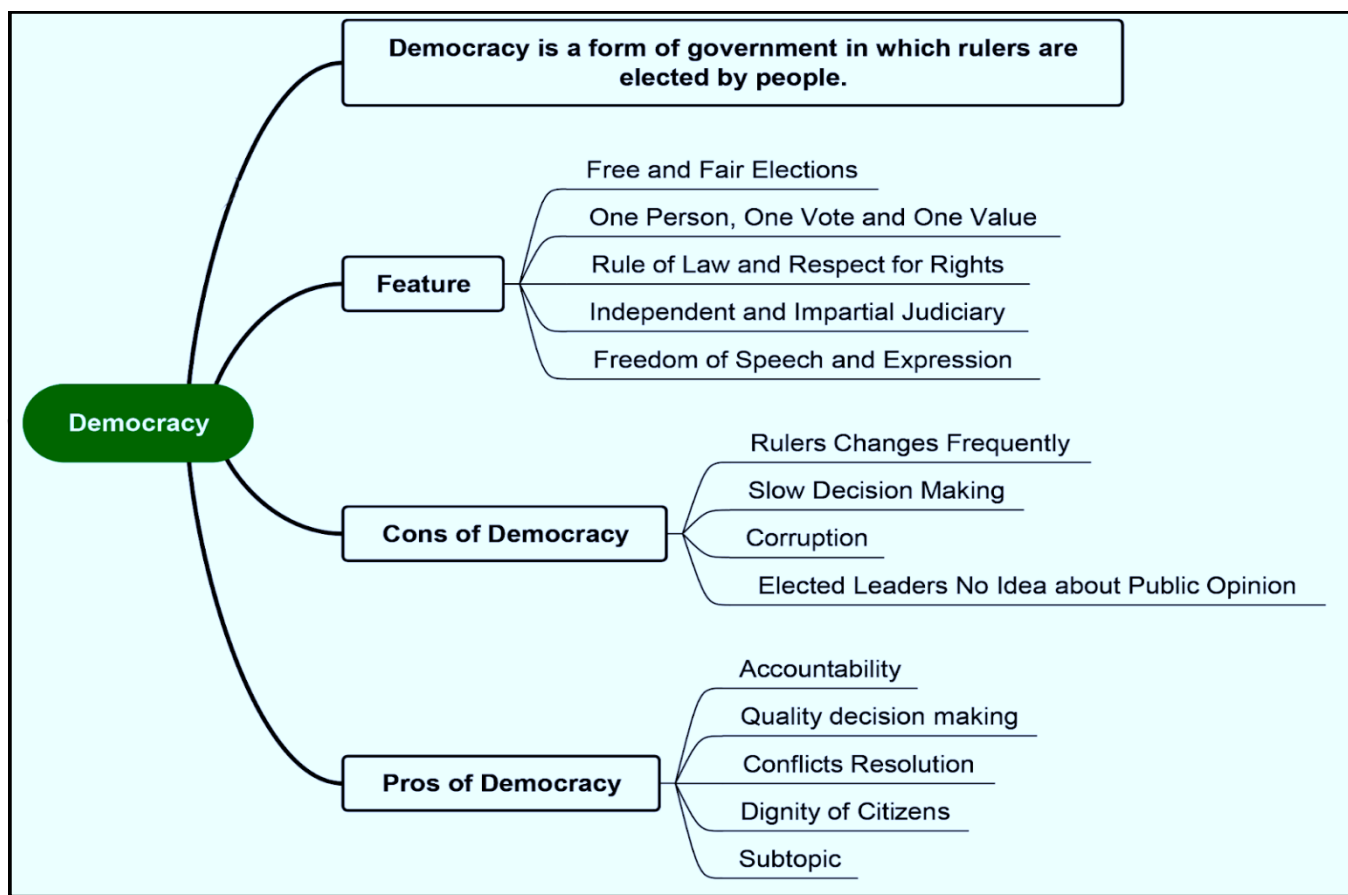
➤ The government responds to the needs of its citizens.

➤ **Example:** The Government of India launched the PM Jan Kalyan Yojana to distribute free rations to around 80 crore poor people during the COVID-19 pandemic.

➤ A non-democratic government may or may not respond to the people's needs, but it all depends on the wishes of the people who rule.

Beti Bachao, Beti Padhao Yojana:

- ❖ It is a campaign launched by the Government of India in 2015.
- ❖ Objectives of the scheme:
 - To increase the number of girl children (measured through sex ratio).
 - To ensure holistic development of the girl child.



Lecture -03

Constitution: Meaning, Need, Making of Constitution



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Constitution: Meaning, Need, Making of Constitution

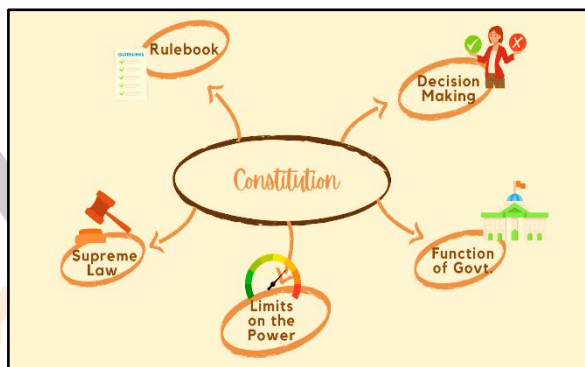


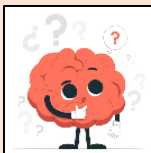
Outline of Lecture

- ❖ Constitution
 - Need for Constitution
- ❖ Making of Indian Constitution

Constitution:

- ❖ In a democracy, the rulers or the Government are not free to do whatever they like because they are elected by the people to work for the benefit of the common people.
- ❖ The constitution is a type of **rulebook** that:
 1. **Guides the Government in decision-making:** The Constitution gives the guidelines that govern decision-making in the country.
 2. **Tells how the Government should function:** A Constitution is a framework for all decisions made by every government official and the legislature (the law-making body), executive (President/Prime Minister/ministers), and the judiciary.
 3. **Puts limits on the power of the Government:** The most common way of limiting the power of government is to specify certain fundamental rights that all of us possess as citizens and which no government can ever be allowed to violate.
- ❖ The constitution is the **supreme law** of the land (India).
- ❖ The constitution of a country is a set of written rules that are **accepted by all people** living together in a country.
- ❖ The constitution provides power to the Government to rule over its citizens but the constitution itself limits this power. This is known as **constitutionalism**.
- ❖ All countries that have constitutions are not necessarily democratic. But all countries that are democratic will have constitutions.





Prelims 2023 Question:

Which one of the following statements best reflects the Chief purpose of the 'Constitution' of a country?

- a. It determines the objective for the making of necessary laws.
- b. It enables the creation of political offices and a government.
- c. It defines and limits the powers of government.
- d. It secures social justice, social equality, and social security.

Answer: (c)

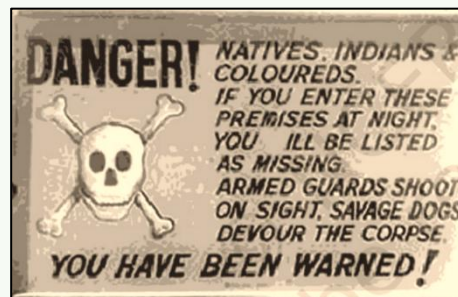
The constitution has many purposes as it guides the government in decision-making, tells how the Government should function, etc. But the **chief purpose of the Constitution is to define and limit the power of government, known as Constitutionalism**. The Constitution provides power to the Government to rule over its citizens but the constitution itself limits this power. The most common way of limiting the power of government is to specify certain fundamental rights that all of us possess as citizens and which no government can ever be allowed to violate.

Example: Why did South Africa need a new Constitution?

- ❖ During the seventeenth and eighteenth centuries, the trading companies from Europe occupied South Africa with arms and force, in the same way they occupied India. But unlike India, a large number of 'whites' had settled in South Africa and became the local rulers.
- ❖ The society came to be divided into three parts:
 1. Rulers (Britishers) or Whites
 2. Original inhabitants or Blacks
 3. Immigrants or Coloured people or people of Mixed races

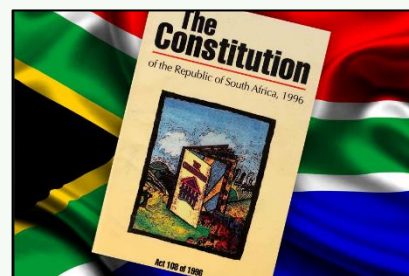


- ❖ The whites used to racially discriminate against blacks and colored people. This racial discrimination was known as **Apartheid**.
- ❖ Apartheid was a system of institutionalized racial segregation unique to South Africa and South West Africa. It existed from 1948 to the early 1990s.
- ❖ The white Europeans imposed this system on South Africa. It divided the people and labeled them on the basis of their skin color. The white rulers treated all nonwhites as **inferiors**. The apartheid system was particularly oppressive for the blacks.
- ❖ They were forbidden from living in areas occupied by the whites. The blacks could work in those areas only if they had a permit. Trains, buses, taxis, hotels, hospitals, schools and colleges, libraries, cinema halls, theatres, beaches, swimming pools, and public toilets, were all separate for the whites and blacks.
- ❖ **Mahatma Gandhi** also experienced discrimination in South Africa when he was asked to get off a train in South Africa's Pietermaritzburg in 1893. He then decided to fight for the rights of Indians living in South Africa.
- ❖ Since 1950, the blacks, colored and Indians have fought against the apartheid system. They launched protest marches and strikes under the leadership of the **African National Congress (ANC)**.
- ❖ A member of the ANC, **Nelson Mandela** (his guru was Mahatma Gandhi) was arrested in 1964 and put in jail, situated on Robben Island, for the next 28 years. He came out of jail in 1992.
- ❖ Finally, at midnight of 26 April 1994, the new national flag of the Republic of South Africa was unfurled marking it the newly born democracy in the world. The apartheid government came to an end, paving the way for the formation of a multi-racial government.
- ❖ In 1994, Nelson Mandela became the first President of South Africa and a new Constitution was framed. The two dominant communities in South Africa at that time



were blacks in the majority (75%) and whites in the minority. South Africa was a **rainbow country** constituting different races i.e. whites, blacks, and mixed-color people.

- ❖ Nelson Mandela wanted to build a new South Africa based on equality of all races and men and women, democratic values, social justice, and human rights. Thus the newly prepared South African Constitution became one of the most modern Constitutions of the world.
- ❖ The new Constitution ended racial discrimination, helped avoid any bloodbath (between blacks and whites), and made all the communities live together peacefully and happily.



Need for Constitution:

- ❖ The constitution provides a set of basic rules that allow for minimal coordination amongst members of a society.
 - It develops trust and minimizes differences among different communities. It helps in confidence-building among the people of the country.
- India is a diverse country having people belonging to different religions, states, speaking different languages, etc. In the absence of the Constitution, conflict may arise among people belonging to different communities.
- ❖ The constitution specifies who has the power to make decisions in a society. It provides this power to the Government.
- ❖ The constitution tells us how the Government will be constituted.
 - The Indian Constitution provides for the democratic government elected by its people. It provides the right to vote to every citizen who is above 18 years of age (One person, one vote, one value).
- ❖ The constitution tells how the Government should function.

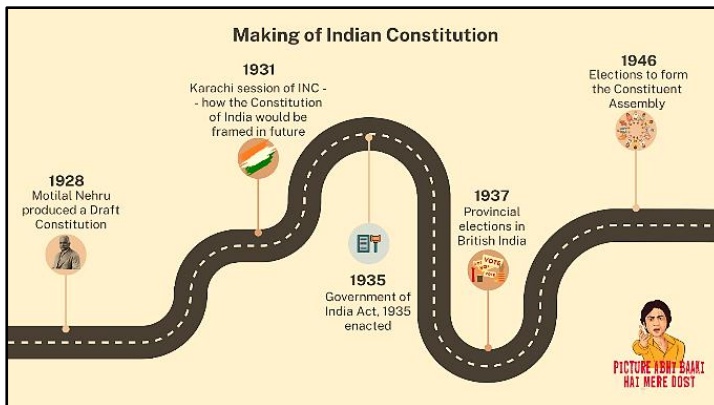


- ❖ The constitution set some **limits on the power of the government**. These limits are fundamental in the sense that the government may never trespass on them.
 - The most common way of limiting the power of government is to specify certain fundamental rights that all of us possess as citizens and which no government can ever be allowed to violate.
- ❖ The constitution expresses the **aspirations and goals** of the people about creating a good society. It tells us what type of society we want to make.
 - It also enables the government to fulfill the aspirations of a society and create conditions for a just society.
 - The framers of the Indian Constitution, for example, thought that each individual in society should have all that is necessary for them to lead a life of minimal dignity and social self-respect — minimum material well-being, education, etc.
- ❖ The constitution defines the **relationship between the Government and its citizens** (in the form of citizenship).
- ❖ The constitution provides some **individual rights (Fundamental Rights)** to all the citizens of the country.

Making of Indian Constitution:

- ❖ India was **partitioned in 1947** on the basis of religious differences between India and Pakistan. It was a very painful process as millions of people migrated and were killed.
- ❖ The making of the new Constitution was very challenging at that time.
- ❖ The **nationalist leaders** involved in the freedom struggle of India had different viewpoints i.e. adopted **different paths** to free India from colonial rule. Example: Bhagat Singh, Chandrashekhar Azad, Jawaharlal Nehru, etc. had different views on how to attain freedom from colonial rule.
- ❖ But the **goal** of all of them was the **same** i.e. the future Indian society should establish equality, eliminate discrimination on the basis of caste, gender, religion, etc., no hunger related death, and abolish untouchability.
- ❖ In **1928**, Motilal Nehru produced a **Draft Constitution**.
- ❖ In the **Karachi session of the Indian National Congress (INC) in 1931**, it was decided how the Constitution of India would be framed in the future.

- Both these documents were committed to the inclusion of a universal adult franchise, the right to freedom and equality, and protecting the rights of minorities in the constitution of independent India.



- ❖ **Government of India Act, of 1935** was enacted by the British Government in India. Almost 70% of the provisions of the Government of India Act, of 1935 were included in the newly formed Indian Constitution.
- ❖ In **1937**, provincial elections took place in British India. Indians got to know about the workings of democratic institutions.
- ❖ In **1946**, elections were held to form the **Constituent Assembly**.
 - The Constituent Assembly was giving concrete shape and form to the principles it had inherited from the nationalist movement.

Lecture -04

Constitution (Part - II)

Constitution (Part - II)



Outline of Lecture

- ❖ Making of the Indian Constitution
 - Pre-Independence Phase
- ❖ Authority of Constitution



DID YOU KNOW?

Need for Constitution:

- ❖ The Constitution provides the basic political identity to its citizens. Example: The passport of a person tells about his/her political identity i.e. whether the person is an Indian national or American national, etc.
- ❖ India exists as a nation because it has a Constitution that provides identity to the country and its citizens.



Making of the Indian Constitution:

- ❖ The making of the constitution for a huge and diverse country like India was not an easy affair.
- ❖ After World War II, many countries in Asia, Africa, and Latin America adopted democracy but India was the only country where democracy was adopted and survived later on.

Pre-Independence Phase of Making of Indian Constitution:

- ❖ In 1928, Motilal Nehru produced a Draft Constitution.
- ❖ In the Karachi session of the Indian National Congress (INC) in 1931, it was decided how the Constitution of India would be framed in the future.
 - Both these documents were committed to the inclusion of a universal adult franchise, the right to freedom and equality, protection of the rights of minorities, and rights against exploitation in the constitution of independent India.

❖ The Indians got to know about the working of democratic institutions through:

➤ **Various Acts of the British Government:**

The Britishers made certain laws for the administration of the people of India like The Government of India Act 1909, Government of India Act 1919, and Government of India Act 1935. The Britishers also started appointing

Indians in government posts. Almost 70% of the provisions of the Government of India Act, of 1935 were included in the newly formed Indian Constitution.

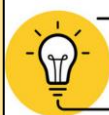
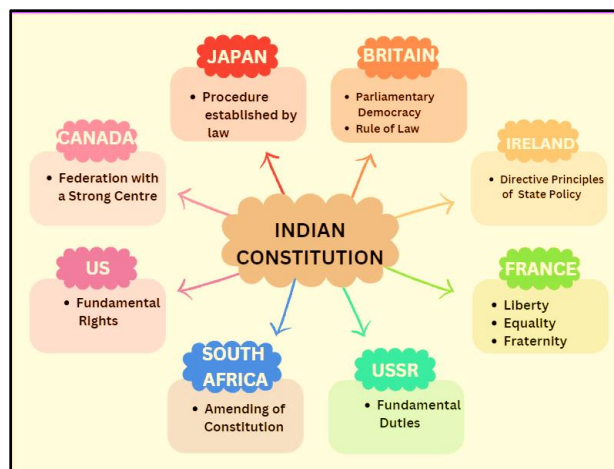
➤ **Provincial elections:** In 1937, provincial elections took place in British India.

❖ In 1946, elections were held to form the Constituent Assembly.

❖ The constitution makers also included the Constitutional provisions of other countries in the Indian Constitution. Examples:

- Parliamentary democracy of Britain,
- Idea of liberty, equality, and fraternity of the French Revolution,
- Fundamental Rights from the American Constitution,
- Fundamental Duties from the Soviet Union's Constitution,
- Procedure established by law from the Japanese Constitution,
- Directive Principle of State Policy (DPSP) from Ireland's Constitution, etc.

Thus some of the remarkable features of other constitutions, which were suitable to the needs or requirements of Indian people, were included in the Indian constitution.



DID YOU KNOW?

Power:

- ❖ Power is the capacity or ability to direct or influence the behavior of others or the course of events.
- ❖ Power can be legitimate or illegitimate.

- ❖ **Examples of illegitimate power:** Terrorists, Religious Gurus, etc. They have the power to make other people follow their instructions but their power is not legitimate as it is not granted by any law or constitution.
- ❖ **Examples of legitimate power:** The President of India comes with certain legitimate powers afforded to them by the Constitution based upon their position as the head of the state of the Republic of India.

Authority:

- ❖ The **legitimate power** is known as the authority. Legitimate power is something that is granted by law or the constitution of the country.
- ❖ **Example:**
 - The traffic police have the legitimate power to control the traffic. The public will not follow the instructions of a common man standing at the traffic signal but they will listen to the traffic police as they have been given this authority by law.
 - The parents have the legitimate power to choose the school for their children. This power is given to the parents by law as the parents are the legal guardians of their children.



Democratic Institutions:

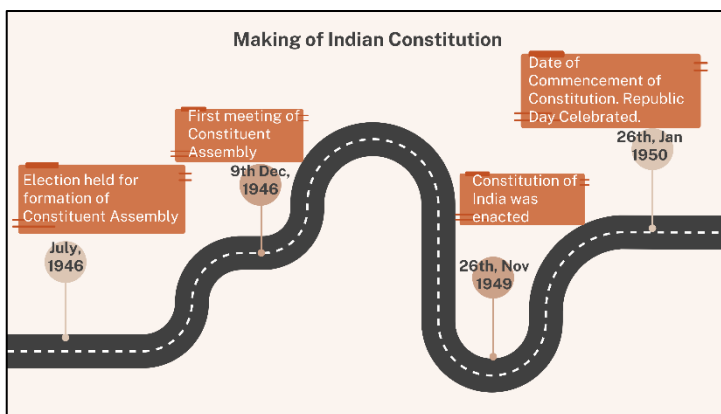
- ❖ The institutions where **decisions** are taken through **discussion and deliberations** (or democratically) among the members of institutions are known as democratic institutions.
- ❖ **Example:** The police, Judiciary, etc. of India are democratic institutions as here decisions are taken democratically and no one can act arbitrarily.



- ❖ **Mode of Promulgation of the Constitution of India:**
 - Mode of promulgation means the **process or method of formation** of the Constitution of India.
 - The people of India accepted the constitution because of its **unique method of formation**, which was **democratic**.



- In July 1946, the elections were held for the formation of the **Constituent Assembly**. It was formed to frame the constitution of India.
- On 9th December 1946, the **first meeting** of the **Constituent Assembly** was held.



- On 26th November 1949, the **Constitution of India** was enacted.
- On 26th January 1950, the **Constitution of India** commenced or came into force. To mark this day, **Republic Day** is celebrated every year in India.
- The **Constituent Assembly** had 299 members including all the nationalist leaders of the time, which were immensely respected by the people like **Jawaharlal Nehru**, **BR Ambedkar**, etc. It represented members from different language groups, castes, classes, religions, and occupations.
- The **Constituent Assembly** worked in a systematic, open, and consensual manner. Firstly, some basic principles were decided and agreed upon. Then a **Drafting Committee** chaired by **Dr. B.R. Ambedkar** prepared a draft constitution for discussion. Several rounds of thorough discussion took place on the Draft Constitution, clause by clause. More than two thousand amendments were considered. The members deliberated for 114 days spread over three years.

❖ **Substantive Provisions of the Constitution:**

- The substantive means the **real or enforceable or something that can be implemented**.
- Substantive provisions in the Indian Constitution refer to the rights, principles, and guidelines that **establish the foundation for the functioning of the government, the protection of individual rights, and the promotion of social justice**.
- These provisions ensure a just and equitable society and provide a framework for the governance of the country.
- **Example:** Fundamental Rights, Fundamental Duties etc.

Lecture -05

Making of Indian Constitution - Post-Independence Phase and Constitution as a Living Document

Making of Indian Constitution – Post-Independence Phase and Constitution as a Living Document



Outline of Lecture

- ❖ Authority of Constitution
- ❖ Making of the Indian Constitution – Post-Independence Phase
- ❖ Reasons Behind No Conflict on Constitutional Arrangements in India



DID YOU KNOW?

Representative Government:

- ❖ A representative government is one in which decisions are taken by representatives of the people. MLA (Member of Legislative Assembly) and MP (Member of Parliament) are elected representatives of the country in the state government and union government respectively.
- ❖ Example: In India, people choose the MP or MLA through elections and they make decisions on behalf of the people. Thus, India has a representative form of government.



Limited Government:

- ❖ A limited government is one in which power is limited by the Constitution of the country.

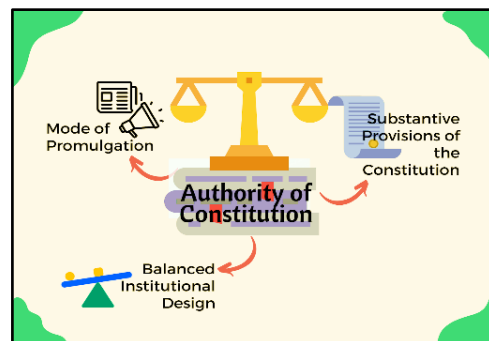
Constitutionalism:

- ❖ Constitutionalism means the authority of the government is limited and the government must conform to the rights of the people.

Authority of Constitution:

❖ Mode of Promulgation:

- Mode of promulgation means the **process or method of formation of the Constitution of India.**
- The people of India accepted the constitution because of its **unique method of formation**, which was **democratic.**
- The constitution makers were highly **respectable** and enjoyed **immense trust** in the eyes of the people.



❖ Substantive Provisions of the Constitution:

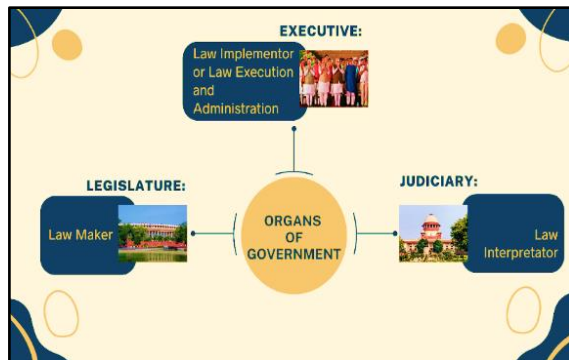
- The substantive means the **real or enforceable or something that can be implemented.**
- The Constitution of India was not framed for any specific group of people (like the majority of Hindus), nor did it give special privileges to any certain group of people. It was **framed for all the people of India** and it **treated everyone equally.**
- Substantive provisions in the Indian Constitution refer to the rights, principles, and guidelines that **establish the foundation for the functioning of the government, the protection of individual rights, and the promotion of social justice.**
- **Example:** Fundamental Rights, Fundamental Duties, etc.

Privilege: Rights enjoyed by few people

❖ Balanced Institutional Design:

- The Constitutions of India created **three organs** for the governance of the country:
 1. **Executive:** Responsible for **execution and administration of laws.** Example: Prime Minister and other Ministers.
 2. **Legislature:** Responsible for **making laws.** Example: Parliament.
 3. **Judiciary:** Responsible for **interpretation of laws.** Example: Supreme Court and High Court.
- No institution is all-powerful in India as the **system of checks and balances** was **established by the Constitution of India.**

- The Indian Constitution horizontally fragments power across the Legislature, Executive and Judiciary, and even independent bodies like the Election Commission.



- The horizontal distribution of power is also called a system of checks and balances. This ensures that even if one institution wants to subvert the Constitution, others can check its transgressions. Thus none of these organs can exercise unlimited power because each organ checks the other.

➤ **Example:**

- ✓ **Instrument of checks and balances between legislature and executive:** The executive is responsible to the legislature in the Parliament for its policies and acts.
- ✓ **Instrument of checks and balances between legislature and judiciary:** The laws made by the legislature can be reviewed by the judiciary to determine if they violate any provision of the Constitution.
- ✓ **Instrument of checks and balances between executive and judiciary:** The Higher judiciary can issue orders or directions against the executive action.

Making of the Indian Constitution in the Post-Independence Phase:

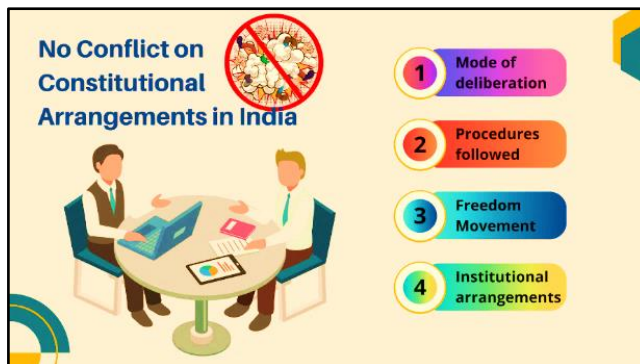
- ❖ The Constitution of India was created by the Constituent Assembly.
- ❖ The 1st sitting of the Constituent Assembly of Undivided India was held on 9th December 1946.
- ❖ In the Constituent Assembly of Undivided India, 292 members were elected by the Provincial Legislative Assemblies, and 93 members were nominated by the Princely States (for every 10 lakh people in the princely states, 1 person was nominated in the Constituent Assembly).
 - The members of the Provincial Legislative Assemblies of different provinces (or States) were elected on the basis of the Government of India Act, 1935.
- ❖ The Constituent Assembly reassembled after the partition on 14th August 1947.

- ❖ There were 299 total members in the Constituent Assembly of divided India.

Reasons Behind No Conflict on Constitutional Arrangements in India:

❖ Mode of Deliberation:

- The discussions, arguments, and debates were done in a very democratic way while writing the Constitution. The democratic debates were guided by logic, reason, and rationality.



- The constitution makers did not simply advance their own interests but gave principled reasons to other members for their positions.
- Only one provision of the Constitution was passed without virtually any debate: the introduction of universal adult suffrage.

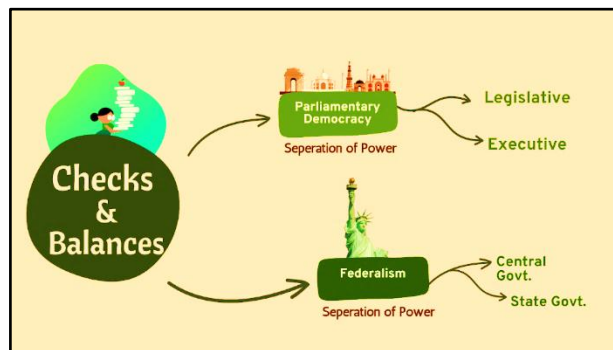
❖ Procedures followed while making of Constitution:

- The draft constitution was prepared by the Drafting Committee headed by Dr. BR Ambedkar.
- The Constituent Assembly had eight major Committees on different subjects. Famous personalities like Sardar Patel, Pandit Jawaharlal Nehru, Dr. Rajendra Prasad, and Dr. BR Ambedkar were heads of maximum committees.
- The separate committees were formed to frame provisions of the Constitution for specific issues like fundamental rights, rights of minorities, etc. The in-depth debates and discussions were held on these specific topics in these committees. These are called 'Constituent Assembly Debates'. These are used to interpret the meaning of the Constitution by the judiciary.

❖ Freedom Movement:

- An Assembly as diverse as the Constituent Assembly of India could not have functioned if there was no background consensus on the main principles the Constitution should enshrine.

- These principles were forged during the long struggle for freedom. In a way, the Constituent Assembly was giving concrete shape and form to the principles it had inherited from the nationalist movement.
- The nationalist leaders had a certain vision about the future of Indian society which included equality, fundamental rights, universal adult suffrage, etc.
- There were some conflicts among them regarding the nature of future India, some wanted a democratic India whereas some wanted a socialist India.
- These ideas of the nationalist leaders significantly influenced the making of the Indian Constitution.



❖ Institutional Arrangements:

- The Indian Constitution created three different types of organs of government i.e. Legislature, Executive, and Judiciary.
- The Indian Constitution also clearly demarcated their powers and established a system of checks and balances among them.
- This led to the adoption of Parliamentary democracy and Federalism.
 - ✓ Under this, there is a division of power between the legislature (Parliament) and the executive (PM and other Ministers). The concept of parliamentary democracy was adopted from Britain.
 - ✓ In federalism, the power is divided between the Central Government and the State Government. Some of the federal features were adopted from the USA but the federal system with a powerful Centre was adopted from Canada.

Lecture -06

Constitution as a Living Document and Philosophy of the Constitution

Constitution as a Living Document and Philosophy of the Constitution

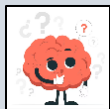


Outline of Lecture

- ❖ Constitution as a Living Document
- ❖ Types of Majority
 - Simple Majority
 - Special Majority

Constitution as a Living Document:

- ❖ The Constitution of India is a living document. This means that the Constitution of India can be amended or changed from time to time, as the conditions emerge.
- ❖ Amendment means any change, modification, addition, or deletion to the Constitution.
- ❖ The Constitution of India has provided a specific procedure that has to be followed for its amendment.
- ❖ It is seen that almost all the Constitutions of the world were rewritten as time or situation changed. Thus no constitution in the world can be called static.
 - **Example:** The constitution of the Soviet Union was rewritten four times whereas the French Constitution was re-written five times. This shows that the Constitution cannot be static.
- ❖ But the Indian Constitution has not been rewritten even once in the last 73 years since its commencement because the Constitution itself provides the method to change it according to the changing needs of the people.
 - The Indian Constitution was enacted on 26 November 1949 and it commenced on 26 January 1950 (Republic Day).
- ❖ A constitution cannot be unalterable as it is the worst thing that can happen to people.
 - The societal needs and challenges will keep on changing as time changes. The past generation cannot bind the future generation otherwise society will not progress.



Question to Ponder upon:

Why has there been a broad agreement on the acceptance of the Indian Constitution?

Answer: The elements that contributed to the acceptance of the Indian Constitution among the people of India are as follows:

- ❖ *Mode of Deliberation: Discussed in the previous class*
- ❖ *Institutional Agreement: Discussed in the previous class*
- ❖ *The way India's Constitution has been Framed: All the groups living within India have a reason to accept the Constitution of India as their interests, concerns, and welfare of all the groups have been taken care of.*

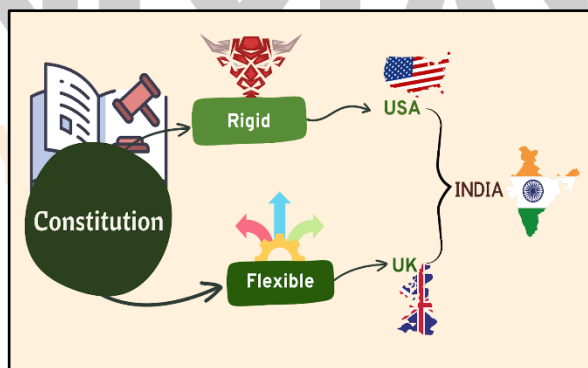
Constitution of India: Rigid or Flexible

- ❖ The constitution can be classified into Rigid or Flexible based on its method of amendment.

- ❖ **Features of a Rigid Constitution:**

- A Rigid Constitution is resistant to change. Example: American Constitution. Thus, it is something that cannot be easily changed.

- Some parts of the Indian Constitution are also rigid. Example: Basic Structure of the Constitution, Special Majority, Resolution by State Legislature, Fundamental Rights, DPSP, etc.



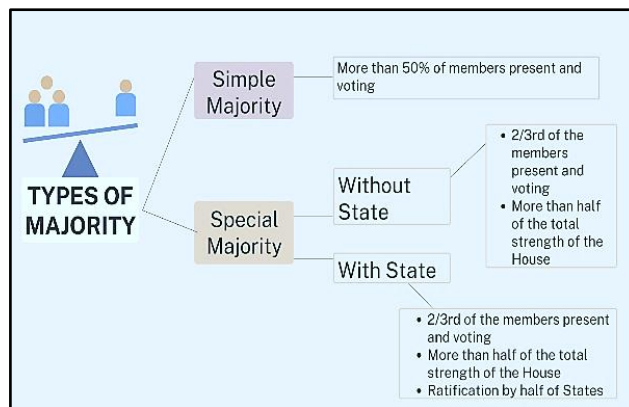
- ❖ **Features of Flexible Constitution:**

- A Flexible Constitution is open to change. Example: British Constitution. Thus, it is something that can be easily changed.
- Large parts of the Indian Constitution are flexible. Examples: Citizenship rules, Admission or establishment of new states, etc.

Types of Majority:

❖ Simple Majority:

- A Simple Majority refers to **more than 50% of the members present and voting.**
- It is an easy method through which the government is run.
- The ordinary laws (related to administration) are passed by a simple majority in the Parliament and State Legislature.
- Suppose an ordinary law has to be passed in the Lok Sabha. The total number of members present on that day in the House is 250. So for the law to be passed it needs to be approved by at least 126 members (more than 50% of 250) present and voting.



❖ Special Majority:

- **Case I:**
 - ✓ A Special Majority refers to **2/3rd of the members present and voting and**
 - ✓ It must be more than half of the total strength of the House.
 - ✓ The total strength of the Rajya Sabha is 245 and the Lok Sabha is 545. Therefore, any amendment must be supported by a minimum of 123 members in the Rajya Sabha and 273 members in the Lok Sabha.
 - ✓ It is applied to those constitutional amendments which don't involve the interest of the State Government.
 - ✓ **Example:** The 52nd Constitutional Amendment Act, of 1985 introduced the Anti-Defection Law. It provided for the disqualification of members of Parliament and State Legislature on grounds of defection.
 - Defection means when an MP or MLA gives up her allegiance from one political party to another for his/her personal gains. Since the amendment did not involve any article related to the distribution of powers between

the States and the Central Government, it was passed by a special majority without ratification by the States.

- ✓ Suppose that a law has to be passed in the Lok Sabha with a special majority. On that day, 450 members were present. Then it has to be passed by 2/3rd of the 450 i.e. 300 members and more than half of 545 (total strength of Lok Sabha) i.e. 273 members.
- **Case II:**
 - ✓ Another case of Special Majority requires state ratification.
 - ✓ It refers to 2/3rd of the members present and voting
and
 - ✓ It must be more than half of the total strength of the House
and
 - ✓ Half of the States should ratify it with a simple majority.
 - ✓ Presently, there are 28 States in India therefore the ratification by 14 States will be required for the passing of the amendment bill.
 - ✓ A simple majority is required in the State to make it easy for so many States to pass the law.
 - ✓ A special majority is required at the Centre (Parliament) to make the process of amendment difficult for the Government. The Government would need the support of the opposition parties to pass these laws.
 - ✓ It is applied when an amendment aims to modify an article related to the distribution of powers between the States and the Central Government. This is done to protect the federal features of the Constitution.
 - ✓ Example: The 101st Amendment Act, of 2016 introduced the Goods and Services Tax (GST). It combined all the Central and State taxes (except for a few) under one head i.e. GST. Since the amendment involved an article related to the distribution of financial powers between the States and the Central Government, it was passed by a special majority with ratification by the States.



**DID YOU
KNOW?**

- ❖ The Indian Constitution is a mixture of rigid and flexible provisions.
 - *Flexibility in the Indian Constitution:* Certain provisions in the Constitution can be amended by a simple majority of both Houses of Parliament.
 - *Rigidity in the Indian Constitution:* Certain cases can be amended by a special majority of all the members of the Parliament. Certain features relating to the federation require ratification by half of the states besides requiring a special majority.
- ❖ Thus, the amendment procedure of the Indian constitution combines the features of rigidity and flexibility.
- ❖ The constitutions of the U.S., South Africa, Russia, etc. have employed the principle of special majority for the amendment of their constitution. In the case of the constitution of the US, it is the two-thirds majority, while in South Africa and Russia, for some amendments, the three-fourths majority is required.
- ❖ Thus, the special majority of two-thirds of the members present and voting has been adopted from the American Constitution in the Constitution of India.

Lecture -07

Constitution as a Living Document (Part - II)



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BY PHYSICS WALLAH

Constitution as a Living Document (Part - II)



Outline of Lecture

- ❖ Reasons behind multiple amendments to the Indian Constitution
- ❖ Content of Amendments to Indian Constitution So Far
- ❖ Controversial Amendments

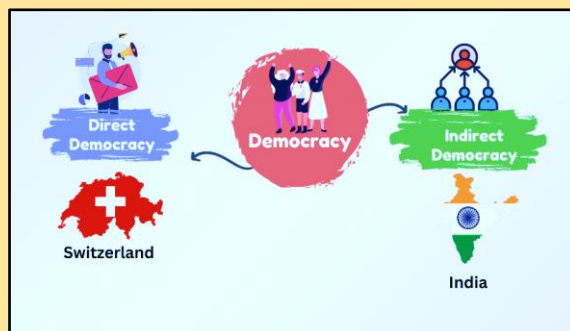


- ❖ There are two types of Democracy:

1. Direct Democracy
2. Indirect Democracy

Direct Democracy:

- ❖ In direct democracy, all the decisions are taken by the people directly. Example: Switzerland is a direct democracy.
- ❖ In countries like Switzerland, Russia, and Italy, people participate in the process of amending the Constitution. Here people initiate or approve amendments to the Constitution.
- ❖ This system was **not possible** in India because of its large population.



Indirect Democracy:

- ❖ In indirect democracy, the representatives elected by the people exercise the supreme power and thus carry on the government and make laws. Example: India, USA, etc.
- ❖ This type of democracy is also known as Representative Democracy.

Reasons behind multiple amendments to the Indian Constitution:

- ❖ No constitution can incorporate future developments. An unalterable constitution will become a **sterile and useless document** for future generations.
- ❖ The challenges and circumstances demand amendment in the constitution.

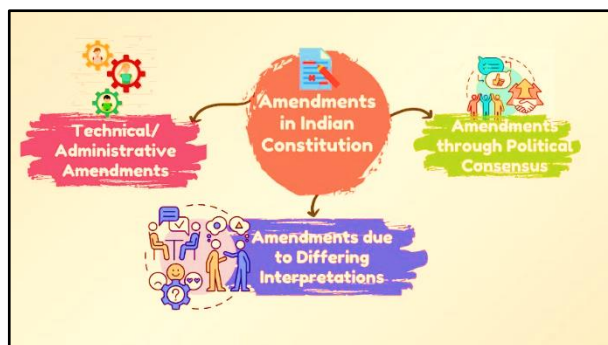
- ❖ The *Constitution of India* is a living document and it is able to respond to the challenges of time. It has survived as it was able to live up to the expectations of the people. Thus, the *Constitution of India* has stood the test of time and that's why it is accepted by the people of India even today.

Amendments to the Indian Constitution So Far:

- ❖ There have been more than 100 amendments to the Indian Constitution.
- ❖ These amendments can be classified into three types:

- **Technical/Administrative Amendments:**

- ✓ These amendments were done to make the administration more effective.
- ✓ They only added some clarifications, explanations, minor modifications, etc. to the original provisions but made no substantial difference to the provisions.



- ✓ **Example of Technical Amendment:** After independence, the Constitution of India provided reservation for Scheduled Castes (15%) and Scheduled Tribes (7.5%) for a period of ten years (i.e. up to 1960).

- After every ten years, an amendment is made to extend the period of reservation by another ten years. This has led to seven amendments so far. But these amendments have not made any difference to the original provision, therefore it is only a technical amendment.

- ✓ **Example of Administrative Amendment:** The 15th Constitutional Amendment Act of 1963 was passed to increase the age of retirement of High Court judges from 60 to 62 years for the better administration of High Courts. The salaries of judges of High Courts and the Supreme Court were also increased by the 55th Constitutional Amendment Act of 1986.

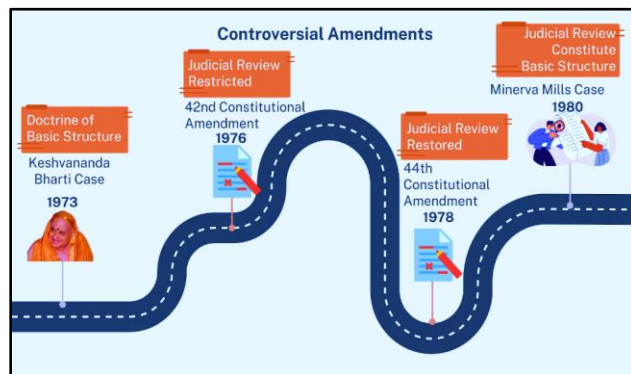
- **Amendments due to Differing Interpretations:**

- ✓ The provisions of the Constitution can be interpreted differently by the judiciary and the Government.

- ✓ Many times, Parliament did not agree with the judicial interpretation and therefore, sought to amend the Constitution to overcome the ruling of the judiciary.
- ✓ **Example:** The Supreme Court interpreted that the Right to Property is a Fundamental Right and cannot be taken away by anyone including the Government.
 - But this could increase inequality in the society because after independence some people like Zamindars had acres of land whereas many people like poor peasants had no land left for their survival.
 - The 44th Constitutional Amendment Act of 1978 deleted the Right to Property as a Fundamental Right and converted it into a simple legal right. Thus, the Parliament amended the Constitution to establish economic equality among all.
- **Amendments through Political Consensus:**
 - ✓ These amendments have been made as a result of the consensus among the political parties. Some changes had to be made in order to reflect the prevailing political philosophy and aspirations of the society.
 - ✓ **Example 1:** The 52nd Constitutional Amendment Act of 1985 was passed to introduce an Anti-Defection Law in India to prevent the Defection of an MP or MLA from one political party to another for her personal gains. It provided for the disqualification of members of Parliament and State Legislature on grounds of defection.
 - ✓ **Example 2:** The 93rd Amendment Act of 2005, empowered the state by adding an extra provision in Article 15 to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or scheduled tribes regarding their admission to educational institutions whether aided or unaided by the state.

Controversial Amendments:

- ❖ There were disagreements between the different institutions of the government related to these amendments.
- ❖ Example:
 - In the *Kesavananda Bharati Case vs. the State of Kerala Case, 1973*, the Supreme Court innovated the 'Doctrine of Basic Structure'. According to this doctrine, Parliament can amend any part of the Constitution provided it does not destroy the basic structure of the Constitution.
 - The doctrine of basic structure is the base of the Constitution and if it is disturbed then the whole Constitution of India would be destroyed. The Supreme Court has described what constitutes the basic structure from time to time.
 - In retaliation, Parliament introduced the 42nd Constitutional Amendment Act of 1976 to put restrictions on the power of judicial review of the Supreme Court. This meant that the judiciary could not review some of the acts made by the Parliament.
 - The 44th Constitutional Amendment Act of 1978 was passed by the Government to cancel most of the changes affected by the 42nd Constitutional Amendment Act. This Act again restored the power of judicial review of the Supreme Court and High Court.
 - In the *Minerva Mills Case, 1980*, the Supreme Court ruled that the power of judicial review constitutes the basic structure of the Constitution and thus Parliament cannot take away the power of judicial review from the judiciary.





Judicial Review:

- ❖ It refers to the power of the judiciary to review any law made by the Parliament. On examination, if they are found to be violative of the Constitution, they can be declared illegal, unconstitutional, and invalid (null and void) by the judiciary.
- ❖ The concept of judicial review has been adopted from the American Constitution in India.



42nd Constitutional Amendment Act, 1976:

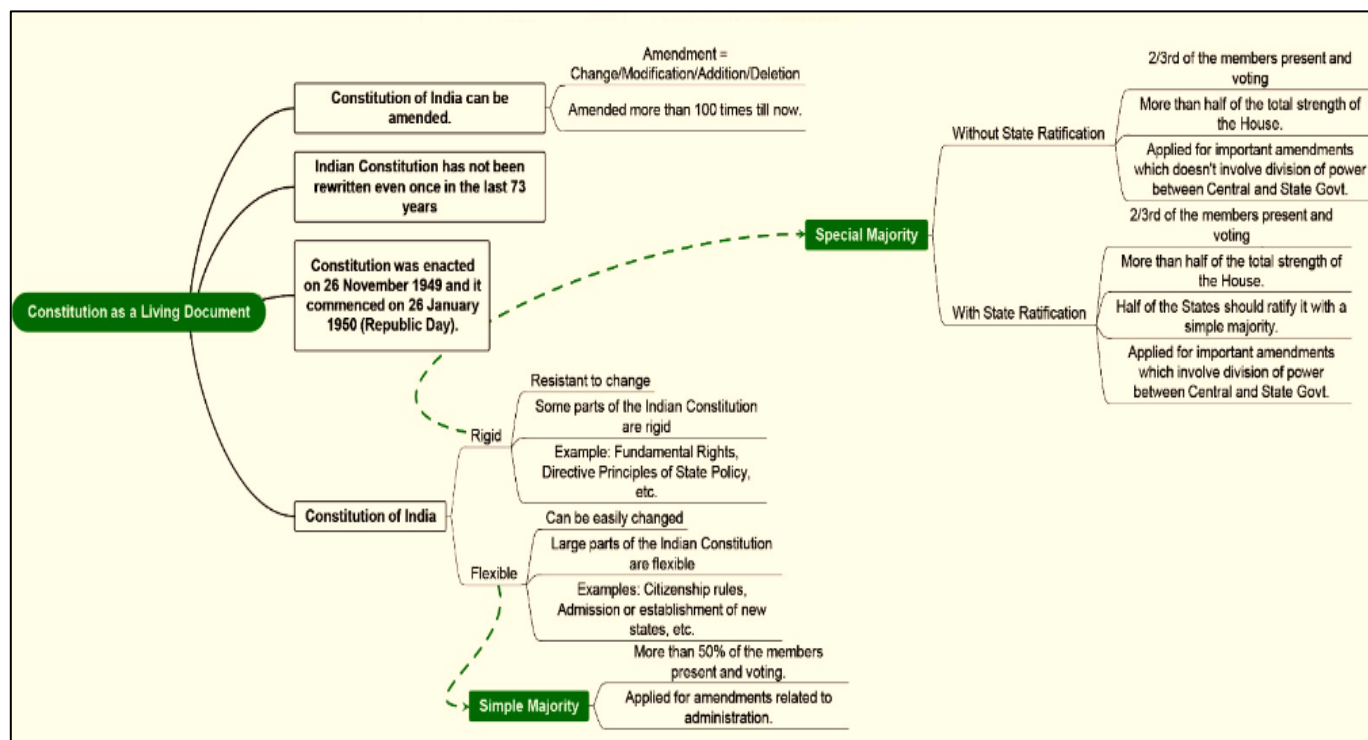
- ❖ This Act is also called a Mini-Constitution as many changes were made in the Indian Constitution through this Act.
- ❖ This Act was introduced in the background of an internal emergency, declared in the country in June 1975 by the then Prime Minister Indira Gandhi.
- ❖ Some of the changes made by this controversial Act include increasing the tenure of Lok Sabha from 5 years to 6 years, introducing Fundamental Duties, etc.



44th Constitutional Amendment Act, 1978:

- ❖ In 1977, the Janata party came into power and Morarji Desai became the Prime Minister of India.
- ❖ The 44 Constitutional Amendment Act of 1978 was passed during his tenure to roll back/revoke all the changes done through the 42nd Constitutional Amendment Act.
- ❖ Thus, the power of the judiciary was restored, tenure of Parliament became 5 years again, etc.







Lecture -08

Doctrine of Basic Structure and Philosophy of Constitution (Part - III)

Doctrine of Basic Structure and Philosophy of Constitution (Part – III)



Outline of Lecture

- ❖ Doctrine of Basic Structure
- ❖ Constitution as a Living Document
- ❖ Philosophy of the Constitution

Doctrine of Basic Structure:

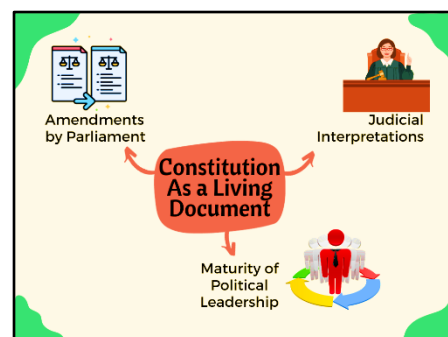
- ❖ Basic Structure refers to **all important values, principles and provisions on which the entire Constitution rests**. If the Basic Structure is destroyed then the whole Constitution would be disturbed.
- ❖ The **Doctrine of Basic Structure** was propounded by the Supreme Court in the **Kesavananda Bharati vs State of Kerala Case, 1973**.
 - The Supreme Court stated that **Parliament can amend any part of the Constitution but it cannot destroy the basic structure of the Constitution**.
 - It places the **Judiciary as the final authority** in deciding what constitutes the basic structure and if an amendment to the Constitution violates the basic structure.
- ❖ Although the **Supreme Court** refused to precisely explain what all aspects are part of the basic structure, it has **described what constitutes the basic structure from time to time**.
 - **Example:** In the **Minerva Mills Case, 1980**, the Supreme Court ruled that the power of **judicial review** constitutes the **basic structure of the Constitution**.
- ❖ The theory of basic structure is itself an **example of a living constitution**. There is **no mention of this theory in the Constitution**.
- ❖ The basic structure doctrine has further **consolidated the balance between rigidity and flexibility**: By saying that certain parts cannot be amended, it has underlined the rigid nature while by allowing amendments to all others it has underlined the flexible nature of the amending process.
- ❖ In **2000**, a **committee to review the workings of the Constitution** was formed by the Government of India under the Chairmanship of Justice Venkatachaliah. He accepted

that the doctrine of basic structure should not be amended by the Parliament rather it must be respected by the Parliament and the Government.

- ❖ A number of judicial interpretations have changed our understanding of the Constitution. The Government and the people of India have also accepted them.
 - **Example:** The judiciary has tried to establish a **balance between Fundamental rights and Directive Principles of State Policy** through its interpretations in different cases.

Constitution As a Living Document:

- ❖ The idea of the Constitution as a living document means that the **Constitution can change itself with the passage of time**. Thus almost like a living being, this document keeps responding to the situations and circumstances arising from time to time.
- ❖ Even after so many changes in society, the Constitution continues to work effectively because of this ability to be dynamic, to be open to interpretations, and the ability to respond to the changing situation. This is a **hallmark of a democratic Constitution**.



- ❖ The factors responsible for making the Indian Constitution a living document are:
 - **Amendments made by the Parliament:**
 - ✓ The Indian Constitution is a **blend of rigidity and flexibility**.
 - ✓ **Flexibility in the Indian Constitution:** Most provisions in the Constitution can be amended by a **simple majority** of both Houses of Parliament.
 - ✓ **Rigidity in the Indian Constitution:** Certain cases can be amended by a **special majority** of all the members of the Parliament. Certain features relating to the federation require **ratification by half of the states** besides requiring a **special majority**.
 - **Judicial Interpretations:**
 - ✓ The various interpretations of the Supreme Court have played an important role in the **evolution of the Constitution without changing its basic or core values and principles**. **Example:** Doctrine of Basic Structure.

➤ **Maturity of Political Leadership:**

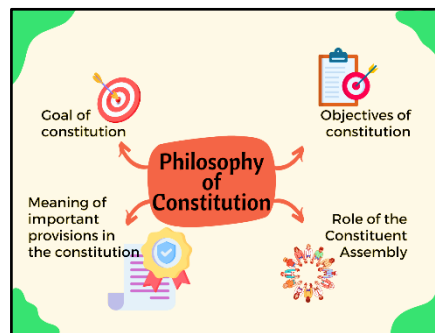
- ✓ In between 1967-73, there was an ongoing tussle between the Parliament and Supreme Court. Finally, in 1973, the **Doctrine of Basic Structure** was propounded by the Supreme Court.
- ✓ In retaliation, the Parliament passed the **42nd Constitutional Amendment Act of 1976 (mini-constitution)** to restrict the power of judicial review of the Supreme Court.
- ✓ In the **Minerva Mills Case of 1980**, the Supreme Court said that **judicial review** is a part of the basic structure of the Constitution and struck down the provision of the **42nd Constitutional Amendment Act** relating to the restriction on the power of judicial review.
- ✓ Eventually, the **doctrine of basic structure** was accepted by all including Parliament and the Government. Had Parliament wanted, it could have disturbed this doctrine thus escalating the tensions between itself and the judiciary. But this didn't happen due to the maturity of the political leadership of the time.

Philosophy of the Constitution:

❖ Philosophy is something that creates room for *debates, discussions, and deliberations* guided by *reason, logic, and rationality*.

❖ The philosophy of the constitution means the:

- *Goals of the Constitution*
- *Objectives of the Constitution*
- *Meaning of Important Provisions in the Constitution such as citizenship, justice, etc.*
- *Role of the Constituent Assembly*

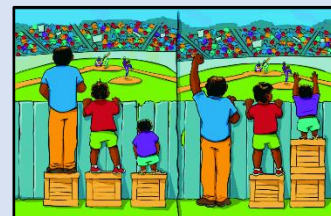




DID YOU KNOW?

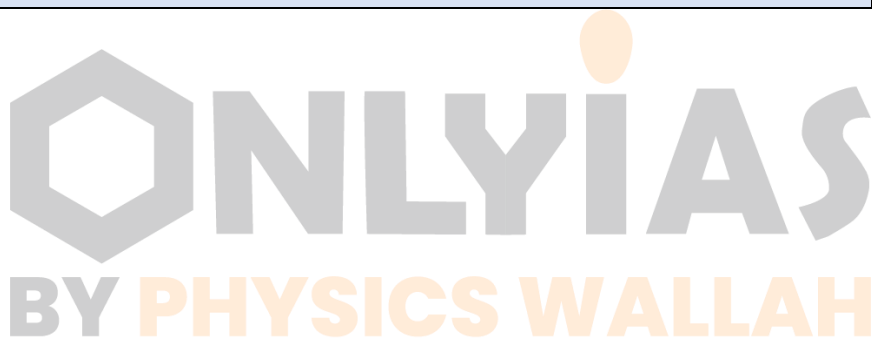
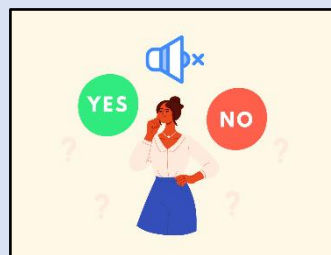
Justice:

- ❖ Justice means giving people what they deserve.
- ❖ The Indian Constitution has adopted the idea of justice from the USSR Constitution.



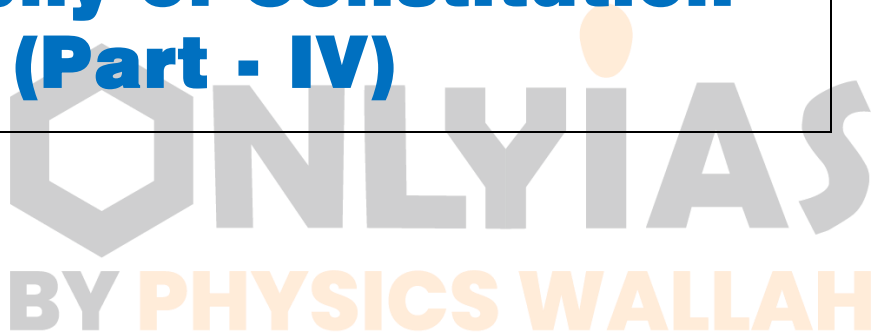
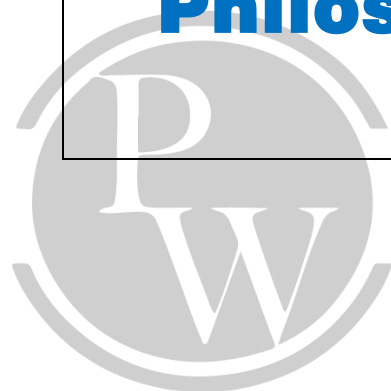
Freedom:

- ❖ Freedom is the ability to say 'YES' when it is needed, the ability to say 'NO' when it is needed, and the ability to maintain 'SILENCE' when nothing is needed. When all these dimensions are available then we call it freedom.



Lecture -09

Philosophy of Constitution (Part - IV)



Philosophy of Constitution (Part - IV)



Outline of Lecture

- ❖ Political Philosophy of Constitution
- ❖ Constitution as Means of Democratic Transformation
- ❖ Reasons behind Referring to Debates of Constituent Assembly
- ❖ Political Philosophy of the Indian Constitution
 - **Secularism:** Western and Indian Secularism

Constitution:

- ❖ Some people think that the Constitution is merely a rule book and has no connection with values and morality. However, the Constitution contains laws, which are guided by the values and morality of society.
 - **Example:** The Indian Constitution prohibits the practice of untouchability and thus upholds the principle of equality in society. Therefore, there is a connection between laws and moral values.
- ❖ A Constitution is a moral book that aims to establish a moral vision in society. But not all laws have a moral vision.
 - **Example:** The Arms Act of 1959 says that a person carrying arms without a license will be arrested and punished. These laws were not made to establish some values in society rather they were made for the better functioning of society. Following the traffic rules to avoid traffic jams is another example.



DID YOU KNOW?

Values:

- ❖ Values are standards of desirability in society meaning what is worthwhile and what is not.
- ❖ Values guide us on what we should do in society. It tells us what society expects us to do as members of society.



- ❖ Example: Honesty is a value in society.

Morality

- ❖ Morality tells us what is right or what is wrong.
- ❖ Example of the moral act: hard work, respecting elders, etc.
- ❖ Example of the immoral act: selling drugs, misbehaving with teachers, etc.



Political Philosophy of the Constitution:

- ❖ Philosophy promotes open discussion guided by logic and rationality. It strives for a good life.
- ❖ Political philosophy means philosophical reflection through which our political life (anything that is related to our interaction with our fellow beings in society) can be arranged.
- ❖ The political philosophy of the Indian Constitution includes:
 - Equality among all
 - Freedom of speech and expression
 - Individual rights
 - Right to life with dignity
 - Universal Adult Suffrage

These rights are necessary for the development of personality and existence of its people.



- ❖ The Japanese Constitution strives for peace, therefore, it is popularly known as the 'Peace Constitution'.



Constitution as a Means to Democratic Transformation:

- ❖ In a democratic system, the power always lies in the hands of the people.
- ❖ The Constitution as a means of democratic transformation means that:

- It limits the power of the State.
 - ✓ The Constitution provides some basic rules, preventing states from turning tyrannical.
 - ✓ During the colonial rule in India, the power of the British Government was not limited. Example: The Jalliwala Bagh massacre was possible because of the presence of unlimited power in the hands of the British Government.
- It gives power to the hands of the people. Example: Every citizen in India above 18 years of age has the right to vote and this right cannot be discriminated against on the grounds of religion, race, caste, sex, etc. This is known as **Universal Adult Franchise**.
- It empowers the State and its people to make their own decisions. In this sense, we are not dependent on any foreign power. Here, people are decision-makers. Example: People decide who will run the government in the country by casting their votes in elections.
 - ✓ During the British rule in India, the people were not decision-makers rather all the decisions taken by the British Government were imposed on the Indian masses.

Reasons behind Referring to Debates of Constituent Assembly:

- ❖ The Constitution of India was framed by the Constituent Assembly. It is generally seen that the Supreme Court frequently refers to the debates of the Constituent Assembly. The reasons include:
 - The Constitution of India is **not an old Constitution** as it commenced just 73 years back on 26th January 1950. The world of the original framers and our present-day world may not have changed so drastically. The history of our Constitution is still very much a history of the present.
 - The Supreme Court says that one can read the minds of the framers of the Constitution while reading the debates of the Constituent Assembly.

Political Philosophy of the Indian Constitution:

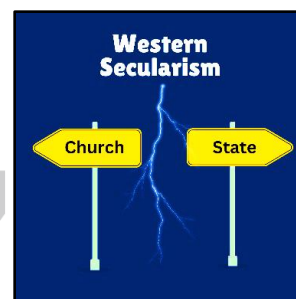
- ❖ The Political Philosophy of the Indian Constitution comprises: **Secularism, Individual Rights, and Social Justice**.

Secularism:

- ❖ The word 'secularism' literally means 'this worldly' goals.
 - **Example:** The goal of purchasing a car or cracking the UPSC exam is a this-worldly goal as it has no connection with the other world (related to the Gods and Goddesses).
- ❖ Secular states are widely seen as treating religion as only a private matter. They refuse to give religion public or official recognition.
- ❖ There are two types of secularism:
 1. Western Secularism
 2. Indian Secularism

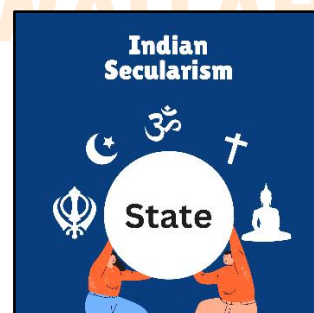
Western Secularism:

- ❖ There should be complete separation between State and religion i.e. Church.
- ❖ The state must not intervene in the domain of religion, religion likewise should not dictate state policy or influence the conduct of the state.
- ❖ States should neither help nor hinder religions. Instead, they should keep themselves at an arm's length from them.



Indian Secularism:

- ❖ The State and religion cannot be completely disassociated.
- ❖ There exists a relationship between them because India believes in the idea that "all religions are equal in the eyes of the State".
- ❖ Thus there will be a principled distance between the State and religion i.e. allowing the state to be distant from all religions so that it can intervene or abstain from interference, depending upon which of these two would better promote liberty, equality, and social justice in the society.
- ❖ **Example:**
 - The Indian Government is concerned about the decreasing population of the Parsi religion.
 - The Indian Constitution provides the fundamental right to its citizens to open religious educational institutions, which also be given aid by the State.



Lecture -10

Philosophy of Constitution (Part - V)

Philosophy of Constitution (Part - V)



- ❖ Philosophy of Constitution
- ❖ Political Philosophy of Indian Constitution
- ❖ Criticisms of Indian Constitution
- ❖ Limitations of Indian Constitution

Philosophy of Constitution:

- ❖ Philosophy means the *idea behind existing reality*. Reality can be seen and touched but the idea can't be seen, it can only be felt.
 - **Example:** The watch that we wear on our wrist is the reality because it is tangible. The idea behind wearing a watch is to know the exact time of the day and be punctual. The idea cannot be seen or touched. It is intangible.
- ❖ In the same sense, the *constitution is a reality that we can see and touch but the idea behind writing the constitution is known as philosophy*.
 - **Example:** The Indian Constitution prohibits the practice of untouchability. The idea behind including such a provision in the Constitution was to uphold the idea of equality and prohibit discrimination in society.

The Political Philosophy of the Indian Constitution:

- ❖ The ideas given in our Constitution for a better arrangement of the political and social life of the people are known as the political philosophy of the Constitution.
- ❖ The political philosophy of the Indian Constitution includes:
 - Individual freedom
 - Social Justice
 - Respect for Diversity and Minority Rights
 - Universal Adult Franchise/Suffrage



- Secularism
- National Identity
- Federalism

❖ The Indian Constitution was written to uphold the ideas mentioned above.

Individual Freedom:

- ❖ Freedom is the ability to say 'YES' when it is needed, the ability to say 'NO' when it is needed, and the ability to maintain 'SILENCE' when nothing is needed. When all these dimensions are available then we call it freedom.
- ❖ The idea of individual freedom goes back to the British period. At the beginning of the 19th century, Raja Ram Mohan Roy was the first person to talk about the freedom of the press i.e. everyone should have the unlimited liberty of publication (about society, criticism of government, etc.). He protested against the curtailment of the freedom of the press by the British colonial state.
- ❖ The Indian National Congress fought for the possession of freedom of the press during the entire freedom struggle of India. Thus, after independence, the freedom of expression became an integral part of the Indian Constitution.
- ❖ The Indian Constitution provided everyone the freedom of speech and expression but this should be enjoyed while respecting the rights of others. Everyone should be able to present their views openly without any fear in a democratic society.



Social Justice:

- ❖ Justice means giving people what they deserve. The makers of the Constitution believed that the mere granting of the right to equality was not enough to overcome age-old injustices suffered by some disadvantaged groups in our society like socially and educationally backward people. They need to be given special privileges for their upliftment in society.
- ❖ The Indian Constitution provides certain special provisions for them in matters of public employment, admission to educational institutions, etc. In this way, the Indian Constitution upholds social justice in the society.

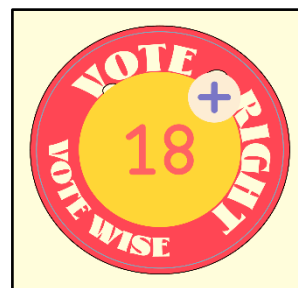


Respect for Diversity and Minority Rights:

- ❖ The Indian Constitution encourages equal respect between communities. Unity in diversity is wanted in India, not uniformity in diversity.
 - The term “Unity in diversity” is defined as the *spirit of brotherhood without any discrimination*. It implies the feeling of oneness or togetherness even after having a lot of diversity.
 - Unity is different from uniformity. **Uniformity** is the state of being uniform and holding the same views, beliefs, standards, ethics, etc. It means everything is alike and mostly it is imposed from outside. **Example:** The same school dress for children of a particular school is an example of uniformity. That is, when things are uniform, everything or everyone looks alike – there are no differences.
 - **Unity** refers to the union or harmony of a group of people. Unity can also refer to qualities such as togetherness, harmony, and integrity of a group. Unity means everything is alike. It comes internally and is not imposed from outside. **Example:** Indians feeling happy when they win the World Cup is an example of Unity because it reflects the union of the citizens of our country.
- ❖ India is a land of **multiple cultural communities**. We have several linguistic (like Kannada-speaking people, Bengali-speaking people, etc.) and **religious communities** (Hindu, Muslim, Christian, etc.). It was important to ensure that no one community systematically dominates others.
- ❖ The Indian Constitution has provided the **right to religious communities to establish and run their own educational institutions**, which may receive aid from the government.
 - The Indian Constitution has **not imposed the Hindi language** on its citizens rather it has given them the freedom to speak their mother tongue.

Universal Adult Franchise:

- ❖ The constitution makers believed that every citizen, i.e., anyone born in India, had a right to take part in the affairs of the country.
- ❖ Therefore, the Indian Constitution provides the **right to vote** to its citizens **above 18 years of age** (earlier it was 21 years of age)



and this right cannot be discriminated against on the grounds of religion, race, caste, sex, etc.

Secularism:

- ❖ Secularism means respect for all religions equally.
- ❖ The Indian secularism is different from Western Secularism.
- ❖ In the Western model of secularism (followed in the US and other Western countries), there is complete separation between State and religion i.e. Church.
 - The state must not intervene in the domain of religion, religion likewise should not dictate state policy or influence the conduct of the state.
- ❖ In the Indian model of secularism, the State and religion cannot be completely disassociated.
 - There will be a principled distance between the State and religion i.e. allowing the state to be distant from all religions so that it can intervene or abstain from interference, depending upon which of these two would better promote liberty, equality, and social justice in the society.
 - In India, the State is neither religious nor irreligious. The Indian State is non-religious in character. An example of a religious state is Pakistan State as it has officially declared that it is an Islamic State. An example of an irreligious state is the Chinese State as it is against the idea of religion. The Indian State upholds the idea of “Sarva Dharma Sambhava” i.e. all religions are equal in the eyes of the State.



National Identity:

- ❖ The Indian State does not have any problem with the religious identity, caste identity, linguistic identity, or sexual identity of its citizens.
- ❖ The Indian State is only concerned about one common identity i.e. the identity of being an Indian citizen. This is the primary identity of the people and all other things are their secondary

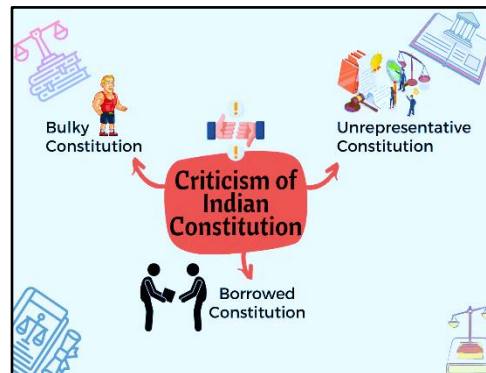


identities. In this way, the State promotes a sense of **brotherhood or fraternity** among its citizens (Sons and Daughters of the same soil).

Federalism: It will be discussed in the upcoming lectures.

Criticism of the Indian Constitution:

- ❖ **Bulky Constitution:** The Indian Constitution is bulky as the **entire Constitution is found in one compact document**. Many countries do not have provisions for an election commission or a civil service commission in the document known as the Constitution. But in India, many such details, practices, and statements are included in one single document and this has made the Constitution somewhat large in size. Similarly, the US also has a compact constitution.



- ❖ **Unrepresentative Constitution:** The Indian Constitution is said to be unrepresentative as the members of the **Constituent Assembly were not directly elected by the people of India**. However, the Constituent Assembly had the representation of all classes of people.
- ❖ **Borrowed Constitution:** The Indian Constitution is entirely an **alien document**, borrowed article by article from Western constitutions, and sits uneasily with the cultural ethos of the Indian people. But there was **never blind borrowing**, rather it was **innovative borrowing**. The Indian Constitution borrowed good features from all over the world and adopted them as **per Indian conditions**. It was a process of **selective adaptation and not borrowing**.

Limitations of the Indian Constitution:

- ❖ **Does not adequately address Gender Justice:** The Indian Constitution has **ignored** some important issues of **gender justice**, particularly within the family.
- ❖ **No Intervention in Poverty:** Despite being a poor developing country, the Indian Constitution has **not provided** some substantive provisions for the **removal of poverty** from India.

Lecture -11

Rights in the Indian Constitution

Rights in the Indian Constitution



Outline of Lecture

- ❖ Rights and Duties
- ❖ Importance of Rights
- ❖ Bill of Rights
- ❖ Fundamental Rights

Rights and Duties:

- ❖ Rights are **social claims** necessary for the development of human personality.
 - Rights belong to the individuals, and therefore, they are **not of the state**.
 - Rights are **individuals' rights**, and, therefore, they are conditions necessary for their development.
 - Rights means something that has been given by the society and accepted by the Government.
 - **Example:** Every individual has the right to freedom of movement, right against exploitation, etc.
- ❖ But rights **cannot be enjoyed unlimited** without any restriction. The rights should be enjoyed while respecting the rights of other people, which is our duty as members of society. Thus, there will be some **reasonable restrictions** on the rights enjoyed by the people.
 - **Example:** Every individual has the right to freedom of movement but this does not mean one can barge into their neighbor's house without informing. This right has to be enjoyed while keeping in mind the rights of our neighbors.
- ❖ Thus, along with rights, every individual has some duties towards society. **Rights and duties are inherently intertwined** and thus cannot be separated. For every right, there is a corresponding duty.



- **Example:** The right to live in a healthy environment is accompanied by the responsibility to keep it clean and healthy. The right to live freely is accompanied by the obligation to refrain from interfering with the lives of others. Similarly, the right to drive a vehicle entails the obligation to follow all applicable government rules and regulations. The right to utilize various government services such as transportation comes with the obligation to pay taxes under the applicable provisions.

Importance of Rights:

- ❖ Rights help in the **mental development, intellectual development, and spiritual development** (knowing what is right or wrong) of the people.
 - **Example 1:** The Asian games were going to be held in Khelgaon in Delhi in 1982. Thousands of workers were appointed by the government for the construction of Khelgaon. These workers were kept in poor working conditions and were paid less than the minimum wages decided by the government. The NGOs studied their poor condition and petitioned the Supreme Court. They argued that employing a person to work for less than the minimum prescribed wage amounts to **begar (it means forceful extraction of services without payment)**, which is a violation of the Fundamental Right, the **Right against exploitation**. The Supreme Court ruled in the favour of workers and said that every individual enjoys the right against exploitation and they should be given reasonable wages for the work performed by them.
 - **Example 2:** In the 1970s, a person named Machal Lalung, 23 years old living in Assam, was arrested for attacking someone. At the time of arrest, it was found that he was mentally ill therefore he was admitted to the mental hospital. After some time, the doctors of the mental hospital informed the police authorities twice that he was now fit for the trial. But nothing was done and he had to remain in the mental hospital for around 54 years. The National Human Rights Commission fought for his **right to have a fair and speedy trial**. He was finally released in 2005 when he attained the age of 77 years.

Bill of Rights:

- ❖ The Bill of Rights was introduced first in the **American Constitution** and later adopted by other constitutions of the world.

- ❖ Bill of Rights means a set of rights mentioned and protected by the Constitution. The Government must respect these rights.
- ❖ It prohibits the government from acting against the rights of the individuals and ensures a remedy in case there is a violation of these rights.

Fundamental Rights:

- ❖ In India, the Bill of Rights is adopted as Fundamental Rights.
- ❖ Fundamental Rights are those rights that are considered fundamental to our existence. Without these rights, we will not be able to realize our potential and our lives will have no meaning.
- ❖ The Fundamental Rights are so important that the Constitution itself ensures that they are not violated by the government.
- ❖ These rights are not unlimited and there are reasonable restrictions imposed on them.
- ❖ Some of the Fundamental Rights given by the Indian Constitution include:
 - Right to Equality
 - Right to Freedom
 - Right to Life and Personal Liberty

Additional Information:

- ❖ During our freedom struggle, the leaders of the freedom movement realized the importance of rights and demanded that the British rulers should respect the rights of the people. The Motilal Nehru committee had demanded a bill of rights as far back as in 1928.

Difference between Fundamental Rights and Ordinary Rights:

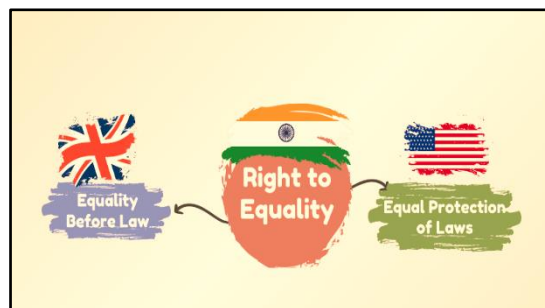
Fundamental Rights	Ordinary Rights
❖ Fundamental Rights are protected and guaranteed by the constitution of the country.	❖ Ordinary legal rights are protected and enforced by ordinary law.
❖ A Fundamental Right may only be changed by amending the Constitution itself.	❖ Ordinary rights may be changed by the legislature by an ordinary process of law-making.

Right to Equality:

- ❖ Right to Equality states that the State shall treat every individual *equally, without any discrimination*.
- ❖ This right is very important because our society did not practice equality in the past. The practice of *untouchability* is one of the crudest manifestations of inequality. This has been *abolished by the Indian Constitution*.
- ❖ Right to Equality includes two rights:

1. Equality Before Law:

- Equality before the law is a declaration of equality of all persons within the territory of India, implying thereby the *absence of any special privilege* in favor of any individual.
- It means *everyone is equal in the eyes of the law*.
- This concept was borrowed from the *British Constitution*.



2. Equal Protection of Laws:

- Equal protection of the laws means that amongst equals the law should be equal and should be equally administered.
- It means *like should be treated alike*. Equals should be treated equally but unequals should not be treated equally.
- This concept was borrowed from the *American Constitution*.
- Thus the the Government while framing laws keeps in mind the situations in which different groups are placed.
- **Example:** The *reservation policy* of the government is justified on the grounds of equal protection of laws. The Indian Constitution provides reservations to the socially and educationally backward classes in public employment and admissions to educational institutions for their upliftment in society.

Right to Freedom:

- ❖ It means *liberty to do things that one thinks best for oneself*.
- ❖ It *does not mean freedom to do anything that one desires or likes*. If that were to be permitted then a large number of people would not be able to enjoy their freedom.
- ❖ It means that every person will enjoy her freedom without threatening the freedom of others and without endangering the law and order situation.

- ❖ There are **reasonable restrictions** imposed on the enjoyment of this right by the Government.

Right to Life and Personal Liberty:

- ❖ Every individual has the right to live with dignity.
- ❖ The Supreme Court says that the **ultimate purpose of the Constitution** is to enhance the **dignity of life of people**.
- ❖ The right to personal liberty means that:
 - No one can be arrested without being told the **grounds for such an arrest**.
 - If arrested, the person has the right to **defend himself by a lawyer of his choice**.
 - Also, it is mandatory for the police to take that person to the **nearest magistrate within 24 hours** (excluding the holidays and journey time). The magistrate, who is not part of the police, will decide whether the arrest is justified or not.

Rights of the Accused:

- ❖ To ensure a fair trial in courts, the Indian Constitution has provided three rights:
 - No person would be **punished twice for the commissioning of the same crime**.
 - No law shall declare any action as **illegal from the back date**.
 - No person shall be forced to **provide self-incriminating evidence** and this shall not be admissible as evidence in the court of law. The punishment cannot be given on the basis of this evidence. This means that **no person shall be asked to give evidence against himself/herself**.

Preventive Detention:

- ❖ Ordinarily, a person would be arrested after he or she has reportedly committed some offense. However, there are exceptions to this.
- ❖ Sometimes a person can be **arrested simply out of an apprehension that he or she is likely to engage in unlawful activity that would harm the society**.
- ❖ It means that if the government feels that a person can be a threat to law and order or to the peace and security of the nation, it can detain or arrest that person. This is known as preventive detention.
- ❖ This can be extended only for **three months**. After three months such a case is brought before an **Advisory Board** (including the Judge of the High Court) for review of the arrest of a person.

Lecture -12

Rights in the Indian Constitution (Part - II), Election and Representation

Rights in the Indian Constitution (Part - II), Election and Representation

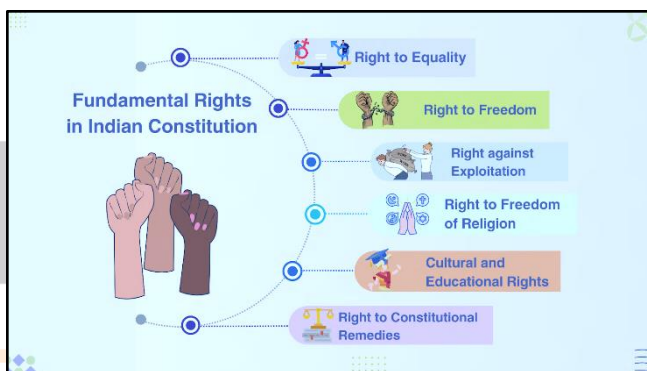


Outline of Lecture

- ❖ Rights Against Exploitation
- ❖ Right to Freedom of Religion
- ❖ Cultural and Educational Rights
- ❖ Right to Constitutional Remedies

Rights Against Exploitation:

- ❖ The Indian Constitution prohibits the practice of begar or forced labor and trafficking in human beings.
- ❖ Begar or forced labor means forceful extraction of services without or with less payment.
- ❖ Human trafficking is the trade of humans (buying and selling of human beings) for the purpose of forced labor, sexual slavery, or commercial sexual exploitation.



Additional Information:

- ❖ The Indian Constitution also forbids the employment of children below the age of 14 years in dangerous jobs like factories and mines under the Right Against Exploitation.

Right to Freedom of Religion:

- ❖ The Indian Constitution provides the right to freedom of religion to every individual.
- ❖ Everyone enjoys the right to follow the religion of his or her choice.
- ❖ Freedom of Faith and Worship:
 - In India, everyone is free to choose a religion and practice that religion.

- Freedom of religion also includes the **freedom of conscience**. This means that a person may choose any religion or may choose not to follow any religion (atheist).
- The Indian Constitution provides every individual the **freedom to profess, follow, and propagate any religion**.
 - ✓ This means that an individual has the **freedom to declare his/her religious faith openly and freely**.
 - ✓ He is allowed to **perform religious worship, rituals, ceremonies, and exhibition of beliefs and ideas**.
 - ✓ He can also **transmit his religious beliefs to others**.
 - ✓ A person is allowed to **wear symbols of his/her religion**. **Example:** A Sikh is allowed to wear a turban, symbolizing his religion.
- The Constitution has imposed certain **reasonable restrictions** on the freedom of religion. The government can interfere in religious matters to root out certain social evils.
 - ✓ **Example:** The government has taken steps banning practices like sati, bigamy, or human sacrifice. The Supreme Court ruled that one can't sacrifice humans while performing religious practices.
- The Constitution has guaranteed the **right to propagate one's religion**, which means one can educate others about their religion. But this does **not** include the **forceful conversions of people from one religion to another** on the basis of intimidation or inducement. It only gives an individual the right to spread information about their religion and thus attract others to it.

❖ **Equality of all Religions:**

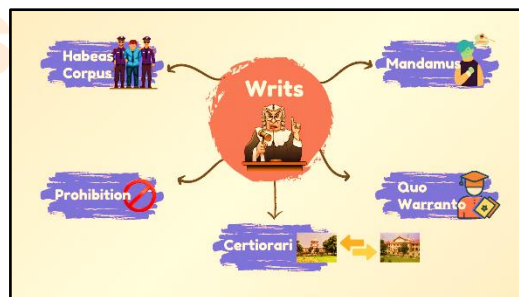
- The Indian Constitution believes in the **equality of all religions**. The State will give **equal treatment to all religions**. The government will not favor any particular religion.
- **India does not have any official religion**. The institutions wholly maintained by the state will not preach any religion or give religious education nor will they favor persons of any religion.
- The objective of these provisions is to sustain and nurture the principle of **secularism**.

Cultural and Educational Rights:

- ❖ The Indian Constitution provides minority groups the right to:
 - conserve their culture,
 - preserve their language,
 - establish their own educational institutions.
- ❖ The term **minority** seems to imply a population subgroup numerically smaller in size than a majority group in a culture. Minorities are groups that have a **common language or religion** and in a particular part of the country or in the country as a whole, they are outnumbered by some other social section. Such communities have a culture, language, and script of their own, and have the right to conserve and develop these.
- ❖ The Constitution recognizes minority groups on the basis of religion and language. Thus there are **religious minorities and linguistic minorities in India**.
- ❖ All minorities, religious or linguistic, **can set up their own educational institutions** to preserve and develop their own culture. The government will not, while granting aid to educational institutions, discriminate against any educational institution on the basis that it is under the management of a minority community.

Right to Constitutional Remedies:

- ❖ Rights are useless if there is no mechanism for restoring the right in case of its violation. That is why **Dr. BR Ambedkar** called the right to constitutional remedies the “**Heart and Soul of the Constitution**”.



- ❖ The Indian Constitution provides the right to every individual to **approach the Supreme Court or High Court** in case of violation of fundamental rights.
- ❖ The Supreme Court and High Court are empowered to issue special orders called **writs** for the restoration of fundamental rights. There are **five types** of writs issued by the Supreme Court or High Court:

1. Habeas Corpus:

- A writ of **Habeas Corpus** means that the court orders to **present the arrested person before himself** to check whether the arrest was correct or not.

- It can also order to **set free** an arrested person if the manner or grounds of arrest are **not lawful** or satisfactory.

2. **Mandamus:**

- This writ is issued when the court finds that a particular **office holder is not performing his legal duty or has failed to perform**, thereby infringing on the right of an individual.
- **Example:** The court can issue a writ of Mandamus against the Municipality officer if he/she is unable to clean the garbage from the roads leading to the spread of diseases in the area because this amounts to a violation of the fundamental right to life and personal liberty of the individuals living in the area.

3. **Prohibition:**

- The **higher court** (Supreme Court or High Court) issues the writ of prohibition **against lower courts** (District Court) when they **exceed their jurisdiction** (assumes the responsibility of higher courts).
- **Example:** The Supreme Court can issue the writ of prohibition against the District Court if it hears a case related to a violation of fundamental rights as it is the responsibility of the Supreme Court.

4. **Certiorari:**

- Under this writ, the court orders a lower court or another authority to **transfer a matter pending before it to the higher authority or court**.

5. **Quo Warranto:**

- The court issues this writ to **check whether a particular person is qualified to hold a particular office**.
- If the court finds that a person is holding office but is not entitled to hold that office, it issues the writ of quo warranto and restricts that person from acting as an officeholder.

Lecture -13

Rights in the Indian Constitution, Election and Representation (Part - II)

Rights in the Indian Constitution, Election and Representation (Part - II)



Outline of Lecture

- ❖ National Human Rights Commission
- ❖ Directive Principles of State Policy
- ❖ Fundamental Duties
- ❖ Relationship between Fundamental Rights and DPSP
- ❖ Election and Democracy

National Human Rights Commission (NHRC):

- ❖ **Meaning of Human Rights:**
 - We enjoy certain rights just by the virtue of being human. These rights are enjoyed by human beings everywhere in the world.
 - Human rights are rights relating to life, liberty, equality, and dignity of the individual, guaranteed by the Constitution, or embodied in the International Covenants and enforceable by courts in India.
 - Some of the human rights include
 - ✓ Right against arbitrary arrest
 - ✓ Right to have a dignified life
- ❖ Two organizations in India i.e. the People's Union for Civil Liberty (PUCL) and the People's Union for Democratic Rights (PUDR), used to ensure that the fundamental rights of people were not violated.
- ❖ In 1993, the Government of India established the National Human Rights Commission for the promotion and protection of human rights.
- ❖ The NHRC is a five-member body composed of:
 - a former chief justice of the Supreme Court of India (the Chairman of NHRC),
 - a former judge of the Supreme Court,

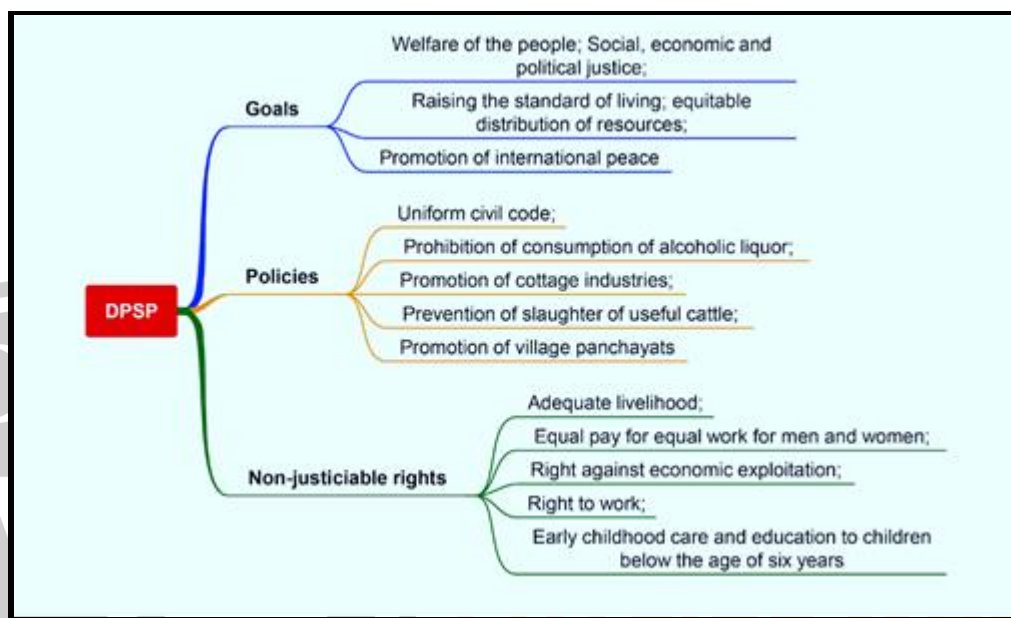
- a former chief justice of a High Court, and
- two other members who have knowledge and practical experience in matters relating to human rights.
- ❖ NHRC ensures that the human rights of the people of India are respected and not violated. It also gives suggestions to the Government of India for the better enjoyment of human rights by the people.
- ❖ The Commission's functions include inquiry at its own initiative or on a petition presented to it by a victim into the complaint of violation of human rights, visit to jails to study the condition of the inmates, undertaking and promoting research in the field of human rights, etc.
- ❖ The Commission does not have the power of prosecution. It can merely make recommendations to the government or recommend to the courts to initiate proceedings based on the inquiry that it conducts.

Directive Principles of State Policy (DPSP):

- ❖ Some guidelines were incorporated in the Constitution but they were not made legally enforceable. This means we cannot approach the Supreme Court or High Court for the enforcement of DPSP, in case of their violation. Unlike Fundamental Rights, DPSPs are non-justiciable in a court of law.
- ❖ Those who framed our Constitution thought that the moral force behind these guidelines would ensure that the government would take them seriously. Besides, they expected that the people would also hold the governments responsible for implementing these directives. So, a separate list of policy guidelines is included in the Constitution. The list of these guidelines is called the Directive Principles of State Policy.
- ❖ Directive principles means the directives given to the State. The State needs to keep Directive principles in mind while formulating any policies.
- ❖ Just like a lighthouse that gives direction to ships, Directive principles give directions to States.



- ❖ Directive principles are like *promises by the State to its people*. The State promises to fulfill them in the future when they have resources available to provide that service.
- ❖ Directive Principles lists mainly three things:
 - the *goals and objectives* that we as a society should adopt,
 - certain *rights* that individuals should enjoy apart from the Fundamental Rights, and
 - certain *policies* that the government should adopt.



Fundamental Duties:

- ❖ The 42nd Constitutional Amendment Act of 1976 incorporated Fundamental Duties in the Indian Constitution.
- ❖ Originally, it provided for *ten Fundamental Duties*. Currently, there are 11 Fundamental Duties.
- ❖ Some of the Fundamental Duties are:
 - Abide by the Constitution and respect its ideals and institutions, the National Flag, and the National Anthem.
 - Defend the country and render national service,
 - Promote harmony and the spirit of common brotherhood among all citizens
 - Protect and improve the natural environment.

- ❖ Like DPSP, they are also *non-justiciable*, i.e. cannot be enforced in a court of law, in case of their violation.

Relationship between Fundamental Rights and DPSP:

- ❖ *Fundamental Rights tell what the State should not do i.e. it should not violate the rights of the people whereas Directive principles tell what the State should do.*
- ❖ *Fundamental Rights mainly protect the rights of individuals while directive principles ensure the well-being of the entire society.*
- ❖ *However, at times, when the government intends to implement Directive Principles of State Policy, it can come into conflict with the Fundamental Rights of the citizens.*
- ❖ **Right to Property:**
 - *Earlier Right to property used to be a fundamental right in India. After the independence, there were large economic inequalities in India due to the exploitative Zamindari system. Some people like Zamindars had acres of land and many people like poor peasants did not have any land.*
 - *So to end this economic divide in India, in the 1950s the Government decided to introduce land reforms in India, which talked about the abolition of the Zamindari system and re-distribution of land.*
 - *Through this, the Government aimed to fulfill the promise of equitable distribution of economic resources of the country and prevention of concentration of wealth into the hands of few, which is one of the Directive principles. But this would not be possible unless the right to property remained a fundamental right, as this would amount to a violation of a fundamental right.*
 - *This led to the beginning of the long legal battle between Fundamental Rights and DPSP. Whenever the Government framed any law for the execution of land reforms, the Supreme Court declared it unconstitutional on the grounds of violation of the fundamental right to property.*
 - *Finally in the Kesavananda Bharti Case of 1973, the Supreme Court ruled that the right to property was not part of the basic structure of the Constitution and therefore, parliament had the power to abridge this right by an amendment.*

- The 44th Constitutional Amendment Act of 1978 removed the right to property as a fundamental right and instead it became a legal right under Article 300 A. This means that the Government could now take away the lands of the people.
- Unlike the fundamental right, in case of violation of legal rights, one cannot directly approach the Supreme Court.

Election and Representation:

Election and Democracy:

- ❖ Elections are necessary for the successful functioning of democracy. Democracy is not possible without elections, conducted at regular intervals.
- ❖ We can have elections without democracy, like in China, and Russia.
- ❖ Democracy is of two types:

1. Direct Democracy:

- In a direct democracy, all the decisions are taken by the people directly. Example: Switzerland is a direct democracy.
- This system was not possible in India because of its large population.

2. Indirect Democracy:

- In indirect democracy, the representatives elected by the people exercise the supreme power and thus carry on the government and make laws. Example: India, USA, etc.
- This type of democracy is also known as Representative Democracy.

Lecture -14

Election and Representation (Part - III)

Election and Representation (Part - III)



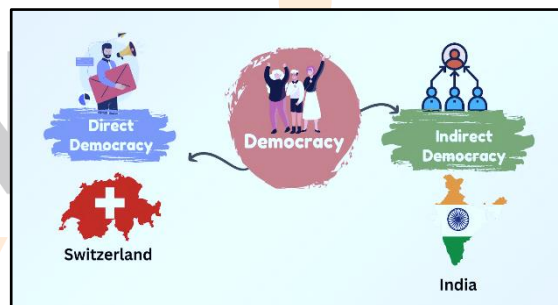
Outline of Lecture

- ❖ Election and Participation
- ❖ Pre-requisites for Democratic Elections
- ❖ Election Systems
 - First-Past-The-Post System (FPTP)
 - Reasons behind the Adoption of First-Past-The-Post System in India
 - Proportional Representation System
 - Differences between the FPTP System and Proportional Representation System

Election and Participation:

❖ Direct Democracy:

- A direct democracy is one where the citizens directly participate in the day-to-day decision-making and in the functioning of the government.
- It is possible in countries with small populations.
- Gram Panchayat of India can be considered the closest example of direct democracy.
- Example: There is direct democracy in Switzerland.



❖ Indirect Democracy:

- In such an arrangement citizens choose their representatives who, in turn, are actively involved in governing and administering the country
- Thus, the citizens have a limited role in making major decisions and in running the administration. They are not very actively involved in making the policies.
- Here citizens are involved indirectly, through their elected representatives.
- Example: There is indirect democracy in India.

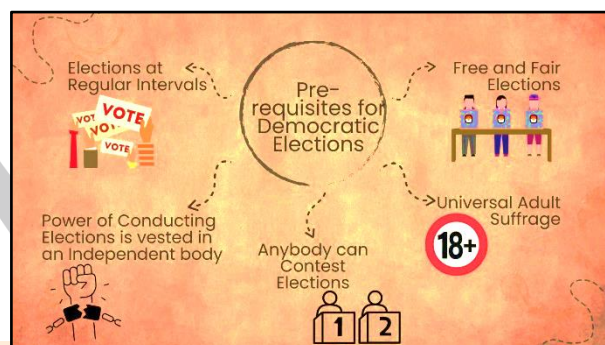
- ❖ *Not all elections are democratic. In fact, non-democratic rulers are very keen to present themselves as democratic. A large number of non-democratic countries also hold elections. They do so by holding elections in such a way that it does not threaten their rule.*
- *China, Russia, Iran, etc. conduct elections in their countries but they cannot be called an example of democracy because the elections conducted are non-democratic in nature.*

Pre-requisites for Democratic Elections:

There are some *criteria* that need to be fulfilled for conducting democratic elections. They are as follows:

❖ Elections at Regular Intervals:

- *All governments are elected for fixed periods. Once elected, governments can stay in power only for that period. If they want to continue to be in power then they have to be re-elected by the people. In this way, the power of the government is limited by regular elections.*



- *In India, the elections are conducted at regular intervals of **five years** to fill up the seats in Lok Sabha and Vidhan Sabha (State Legislative Assemblies).*

❖ Free and Fair Elections:

- *The election system should be **impartial and transparent**. The system of election must also allow the aspirations of the voter to find legitimate expression through the electoral results.*

❖ Universal Adult Suffrage:

- *Every adult should have the **right to vote** in the country's elections.*
- *In China, only those people who are members of the communist party can take part in the elections. People do not get the right to choose among various parties,*

they have to cast their votes in favor of the ruling party. Therefore China cannot be called a true democracy.

- In India, we have a system of Universal Adult Suffrage i.e. everyone above 18 years of age has the right to vote.

❖ **Anybody can Contest Elections:**

- In China, only the members of the Communist Party can contest elections. The candidates need approval from the Communist Party before contesting the election.
- In India, anybody fulfilling certain eligibility conditions has the right to stand for election and become the representative of the people
- **For Example:** In order to stand for the Lok Sabha election, a candidate must be at least 25 years old and for the post of President he/she should be above 35 years of age.

❖ **Power of Conducting Elections is vested in an Independent body:**

- The Indian Constitution provides for an independent Election Commission to conduct free and fair elections in India.

Election Systems:

❖ There are two kinds of election systems in the world:

1. First-Past-The-Post System
2. Proportional Representation System

First-Past-The-Post System:

- ❖ It is followed in India.
- ❖ In this system, the one who gets the maximum number of votes wins the election. The winning candidate need not secure a majority of the votes.
- ❖ Under this system, the entire country is divided into a smaller number of units called **constituencies** for conducting elections.
 - The word constituency is made from the word **constituent** which means being a part of the whole.
- ❖ Each constituency elects **one representative** (called MP or Member of Parliament in India).
- ❖ Not party but **candidates** of the political party fight the elections.

- ❖ **Example:** After the assassination of the then Prime Minister Indira Gandhi, the general elections were conducted in India in 1984. The Congress party won 415 seats (approximately 80% of the total seats in Lok Sabha) out of 543 seats in the Lok Sabha, whereas it only got 48% of the total votes conducted in India. This means that only 48% of those who voted, voted in favour of the candidates put up by the Congress party, but the party still managed to win more than 80% of the seats in the Lok Sabha. Thus despite getting a lesser percentage of votes, the Congress party got the maximum seats in the Lok Sabha.
- ❖ This is one of the **drawbacks** of the First-Past-The-Post System. In this system **whoever has more votes than all other candidates, is declared elected**. The winning candidate need not secure a majority of the votes

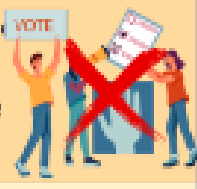
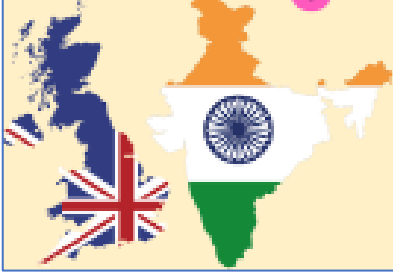
Reasons behind the Adoption of First-Past-The-Post System in India:

- ❖ The system is **easier to understand** by the common voters who may have no specialized knowledge about politics and elections.
 - The proportion of **illiterate people** is **high** in India therefore they needed an election system that is easier to understand.
- ❖ In this system, there is **direct contact** between the people and their representatives.
 - The **people know** about their **representatives**. There is a **moral pressure** upon the representatives to fulfill the demands of their voters otherwise they would not vote for them in the next elections. In a constituency-based system like the FPTP, the voters know who their own representative is and can hold him or her accountable.

Proportional Representation System:

- ❖ This system is followed in Israel.
- ❖ Under this system, the entire country is treated as **one constituency**.
- ❖ Not individuals, but **political party** fights the elections.
- ❖ Each party is **allotted a share of seats** in the parliament in **proportion to its share of votes**.
- ❖ Each party fills its quota of seats by picking many of its nominees from a preference list that has been declared before the elections.

Differences between the First-Past-The-Post System (FPTP) and Proportional Representation (PR) System:

First-Past-The-Post System (FPTP) 	Proportional Representation System 
1  The whole country is divided into smaller geographical units called constituencies.	1  The elections are conducted for the whole country, it is not divided into smaller parts. The entire country is treated as one constituency.
2 Every constituency elects one representative. 	2 More than one representative may be elected from one constituency. 
3 Candidates of the political party fight in the elections. Voter votes for a candidate. 	3 Political parties fight in the elections. Voter votes for the political party. 
4 In case of the death or resignation of an MP, re-elections are conducted to fill the vacancy. 	4 No re-elections for filling up the vacant seat, in case of death or resignation of the official. The political party itself nominates some other person to the vacant seat. 
5 Example  U.K., India	5 Example  Israel, Netherlands

Lecture -15

Election and Representation (Part - IV)

Election and Representation (Part - IV)



Outline of Lecture

- ❖ Election in Rajya Sabha
 - Single Transferable Vote System
- ❖ Reservation of Constituencies
- ❖ Delimitation Commission
- ❖ Election Commission of India

Election in Rajya Sabha:

- ❖ The Parliament of India is the supreme law-making institution.
- ❖ It consists of two Houses:
 1. Lok Sabha - The seats in Lok Sabha are filled through the First-Past-The-Post system.
 2. Rajya Sabha - The seats in Rajya Sabha are filled through the method of Proportional Representation by means of a Single Transferable Vote system.
- ❖ Every State has a specific quota of seats in the Rajya Sabha. The members of the Rajya Sabha are elected by the respective State legislative assemblies. The voters are the MLAs of the respective State. Every voter is required to rank candidates according to his/her preference. To be declared the winner, a candidate must secure a minimum quota of votes, which is determined by a formula:

$$\left\{ \frac{\text{Total votes polled}}{\text{Total number of candidates to be elected} + 1} \right\} + 1$$

- ❖ Example: If 4 Rajya Sabha members have to be elected by the 200 MLAs in Rajasthan, the winner would require $(200/4+1 = 40+1) = 41$ votes in order to win the seat of Rajya Sabha in the elections.

Single Transferable Vote System:

- ❖ It is one of the variants of the Proportional Representation system.

- ❖ Let us take the same example of Rajasthan. The table below represents the votes of all the 200 MLAs represented by A1, A2, A3, A4, A5, ..., A200. They cast their votes for the four candidates represented by X, Y, Z, and T. When the votes are counted it is done on the basis of first preference votes secured by each candidate. In the elections, candidate X was the 1st preference for a total of 41 MLAs. Thus X wins the election and a seat in the Rajya Sabha.

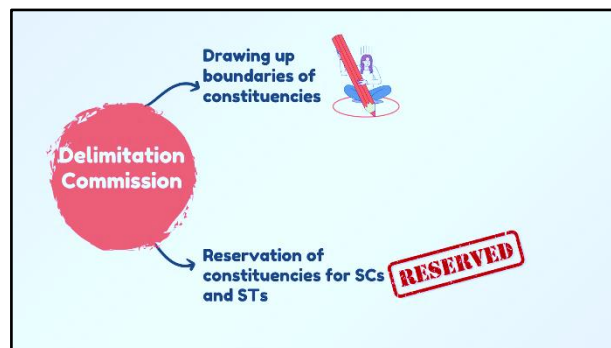
Candidates in elections →	X	Y	Z	T
Rajasthan MLAs ↓				
A1	1st preference	2nd preference	3rd preference	4th preference
A2	1	2	3	4
A3	3	4	1	2
A4	1	2	3	4
A5	2	1	4	3
A6	3	1	2	4
A7	4	3	2	1
A8	4	2	1	3
A9	2	3	1	4
⋮				
A200	1	2	3	4

Reservation of Constituencies:

- ❖ India had a history of caste-based discrimination.
- ❖ In such a social system, the FPTP electoral system can mean that the dominant social groups and castes can win everywhere and the oppressed social groups may continue to remain unrepresented.
- ❖ Therefore after independence, the Constitution of India reserved some seats for Scheduled Castes (SCs) and Scheduled Tribes (STs) in the Lok Sabha and State Legislative Assemblies. Approximately 84 seats are reserved for SCs and 47 seats for STs in Lok Sabha.
- ❖ In the pre-independence phase, a system of **separate electorates** was introduced by the Government of India Act, of 1909 in British India. Under this system, the candidates of a specific community were to be elected only by voters of that specific community in the constituency reserved for that specific community.
 - **Example:** Suppose the Amritsar constituency is reserved for the Sikh community. Now a member of the Sikh community can contest the election and the members of the Sikh community would only cast their votes for the candidate.
- ❖ After the independence of India, the system of a separate electorate was abolished and replaced by the **system of reservation**. In this system, **all voters** in a constituency are **eligible to vote** but the candidates must belong to only a particular community or social section for which the seat is reserved.
- ❖ Initially, the reservations for SCs and STs were provided for the **first ten years** (i.e. until 1960). But since then the period of the reservation has been extended by introducing the **Constitutional Amendment Acts**.
- ❖ Since the population of SCs is distributed throughout the country, a specific constituency cannot be reserved for them rather they have been given reservations throughout the country in proportion to their population.
- ❖ The reservation was given to SCs and STs because they were the **vulnerable and disadvantaged groups** of society. Therefore the reservation was a kind of **protection** given to them to make them **empowered** in the society.

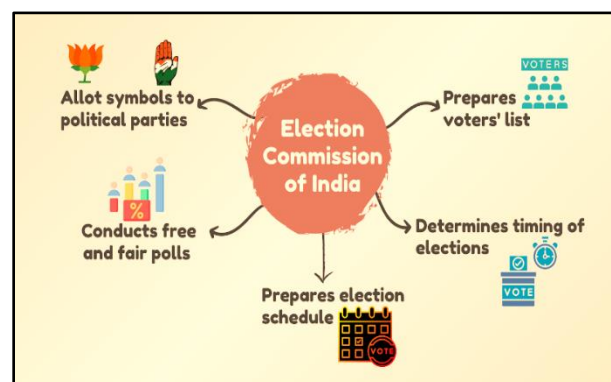
Delimitation Commission:

- ❖ The reservation of seats for the SCs and STs is based on the recommendation of the Delimitation Commission.
- ❖ The Delimitation Commission is appointed by the President of India and works in collaboration with the Election Commission of India.
- ❖ It is appointed for the purpose of drawing up the boundaries of constituencies all over the country. A quota of constituencies to be reserved in each State is fixed depending on the proportion of SCs or STs in that State.
- ❖ After drawing the boundaries, the Delimitation Commission looks at the composition of the population in each constituency. Those constituencies that have the highest proportion of Scheduled Tribe population are reserved for STs.
- ❖ In the case of Scheduled Castes, the Delimitation Commission looks at two things.
 - It picks constituencies that have a higher proportion of the Scheduled Caste population.
 - But it also spreads these constituencies in different regions of the State.
 - This is done because the Scheduled Caste population is generally spread evenly throughout the country. These reserved constituencies can be rotated each time the Delimitation exercise is undertaken.



Election Commission of India (ECI):

- ❖ The responsibility of surveillance of the election process rests with the Election Commission of India.
- ❖ It is responsible for the superintendence, direction, and control of the electoral roll and the conduct of elections to Parliament and to the State Legislative Assemblies and of elections to the offices of President and Vice-President in India.



- ❖ Until 1989, ECI was a *single-member body* consisting of a *Chief Election Commissioner* (normally an IAS officer).
- ❖ Before the *general elections of 1989*, the ECI was made the *three-member body* consisting of one *Chief Election Commissioner (CEC)* and two *Election Commissioners (EC)*. But after the elections, it was again converted into a *single-member body*.
- ❖ In 1993, the ECI was finally made a *three-member body* (until today) consisting of one *Chief Election Commissioner* and two *Election Commissioners*.
- ❖ **Functions of ECI:**
 - It is responsible for conducting *free and fair elections* in India.
 - It prepares the *up-to-date voters' list* for the elections.
 - It accords *recognition to political parties* and *allots symbols* to each of them
 - It also determines the *timing of elections* and prepares the *election schedule*.



Lecture -16

Election and Representation (Part - V)

Election and Representation (Part - V)



Outline of Lecture

- ❖ Election Commission of India
- ❖ Electoral Reforms
- ❖ Executive
- ❖ Types of Executives
 - Principle of Collective Leadership – Parliamentary system, Semi-Presidential system
 - Principle of Individual Leadership – Presidential system
- ❖ Parliamentary Executive in India
- ❖ Discretionary power of President of India

Election Commission of India (ECI):

- ❖ ECI is responsible for the superintendence, direction, and control of the electoral roll and the conduct of elections to Parliament, the State Legislative Assemblies, and elections to the offices of President and Vice-President in India.

Additional Information:

- ❖ The Election Commission is not responsible for the conduct of local body elections, rather it is done by the State Election Commission.
- ❖ Until 1989, ECI was a single-member body consisting of a Chief Election Commissioner (normally an IAS officer).
- ❖ Before the general elections of 1989, the ECI was made the three-member body consisting of one Chief Election Commissioner and two Election Commissioners. But after the elections, it was again converted into a single-member body.
- ❖ In 1993, the ECI was finally made a three-member body (until today) consisting of one Chief Election Commissioner (CEC) and two Election Commissioners (EC).

- The Chief Election Commissioner (CEC) is called the “*primes inter pares*” meaning “*first among the equals*”.
- The CEC *presides over the Election Commission* but does not have more powers than the other Election Commissioners.
- The CEC and the two Election Commissioners have *equal powers* to take all decisions relating to elections as a collective body.
- In case of a *difference of opinion* amongst the Chief Election Commissioner and/or two other Election Commissioners, the matter is *decided by the Commission by a majority*.
- The appointment of the CEC and other Election Commissioners shall be made by the *President*, subject to the provisions of any law made on that behalf by Parliament.
- The Constitution ensures the *security of the tenure* of the CEC and Election Commissioners. They are appointed for a *six-year term or continue till the age of 65*, whichever is earlier.

Additional Reading:

- ❖ A bill has been proposed in the Rajya Sabha which proposes a committee for selecting members of the Election Commission of India (ECI). The committee comprises the *Prime Minister, the Leader of the Opposition in the Lok Sabha, and a Cabinet Minister nominated by the Prime Minister*.

Functions of Election Commission of India

- ❖ It is responsible for conducting *free and fair elections* in India.
 - The ECI has been given *enormous power* to fulfill this function. The *Supreme Court* has stated that for conducting free and fair elections, the ECI has a *reservoir of power* in India.
 - It takes the help of *administrative officials* to conduct the elections. The administrative officers of the State and Central Government are assigned election-related duties and in this respect, the Election Commission has full control over them.

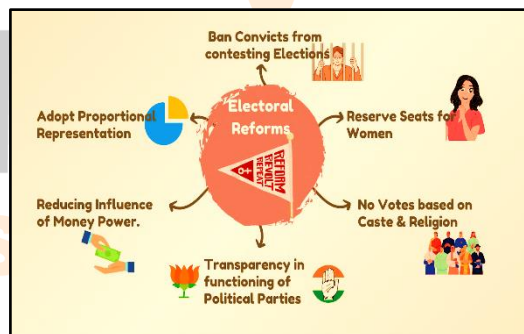
- ❖ It prepares the up-to-date voters' list or electoral roll for the elections. The electoral roll represents the list of people who are eligible to vote.
- ❖ It accords recognition to political parties and allots symbols to each of them.
- ❖ It also determines the timing of elections and prepares the election schedule.

Provisions in the Constitution of India for Removal of Chief Election Commissioner

- ❖ The CEC shall be removed in the same manner as the judge of the Supreme Court. The resolution for the removal shall be passed in each House of Parliament with a special majority i.e. at least 2/3rd of the members present and voting and this should be more than half of the total strength of the House.
- ❖ The President of India shall remove the CEC and ECs. The Election Commissioners cannot be removed from office except on the recommendation of the Chief Election Commissioner.

Electoral Reforms:

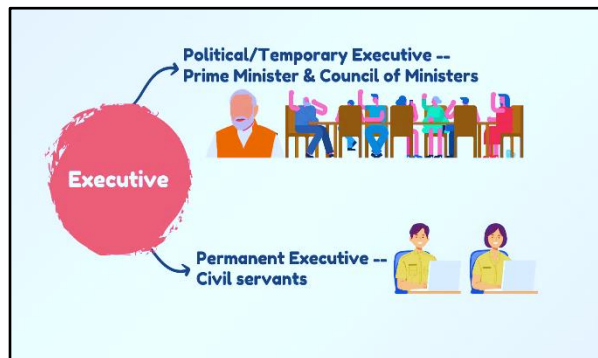
- ❖ **Adopt Proportional Representation System:** India should adopt the proportional representation system instead of the first past the post system. As a result, all the political parties could get representation in the government in proportion to the votes attained by them in the elections.



- ❖ **Ban Convicts from contesting Elections:** The candidates with criminal charges should be not allowed to contest the elections.
- ❖ **Reservation of Seats for Women:** The one-third of the seats should be reserved for the women in the Parliament and State Legislative Assemblies.
- ❖ **No Votes based on Caste and Religion:** There should be a complete ban on the use of caste and religion to gain votes in the elections.
- ❖ **Transparency in the functioning of Political Parties:** There should be a law to regulate the functioning of political parties and to ensure that they function in a transparent and democratic manner.
- ❖ **Reducing the influence of Money Power:** There should be stricter provisions to control the role of money in electoral politics. The election expenses should be paid by the government out of a special fund.

Executive:

- ❖ The word executive means a body of persons that looks after the implementation of rules and regulations in actual practice.
- ❖ The organ of government that primarily looks after the function of implementation and administration is called the Executive.
- ❖ Executive is the branch of government responsible for implementing laws and policies adopted by the Legislature.
- ❖ The Executive is of two types:
 - **Permanent Executive:**
 - ✓ They are responsible for the day-to-day administration of the government.
 - ✓ It includes civil servants.
 - **Temporary Executive or Political Executive:**
 - ✓ They are vested with the overall responsibility of government policy.
 - ✓ It includes Ministers.



Types of Executives:

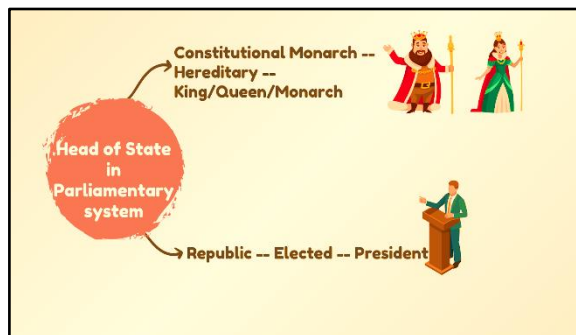
1. System based on the Principle of Collective Leadership:
 - a. Parliamentary system of government
 - b. Semi-Presidential system of government
2. System based on the Principle of Individual Leadership:
 - a. Presidential system of government

Parliamentary System of Government:

- ❖ The principle of collective leadership is found in the Parliamentary system of government.
- ❖ Under this system, the head of the Government is the Prime Minister.
- ❖ The Prime Minister is the head of the majority party in the Legislature particularly Lok Sabha. He is the leader of the largest party in the Lok Sabha.
- ❖ The Prime Minister and the Council of Ministers i.e. Executive are responsible to the Legislature.

❖ The head of the State shall be

- either a **Constitutional Monarch** (if the constitution of the country accepts the monarch) like the **King or Queen**, who enjoys a **hereditary position**. Example: In **Britain, Japan and Canada**, a monarch i.e. King or Queen is the head of the State



and the Prime Minister is the head of the government.

- or a **Republic** called **President**, who is elected by the people. Example: **India, Italy, and Germany** are republic countries i.e. the head of State is the President and the head of the government is the Prime Minister. In Germany, the head of the government is called the Chancellor.

❖ The head of the State is a **Ceremonial Executive** or **nominal head of State** (attends ceremonies, etc.) and **does not have any real power**. The major decisions of the government are taken by the **Prime Minister**. Thus, there is a **Parliamentary system of government** in India.

Presidential System of Government:

- ❖ The principle of **individual leadership** is found in the **Presidential system of government**.
- ❖ Under this system, the **head of the State** and **head of the Government** are the same person i.e. **President**.
- ❖ The President is **directly elected** by the people.
- ❖ The office of the President is very powerful, both in theory and practice.
- ❖ The President i.e. **Executive** is **not accountable or responsible** to the **Legislature**.
- ❖ There is a **Presidential system of government** in the **US, Brazil, and most nations in Latin America**.

Semi-Presidential System:

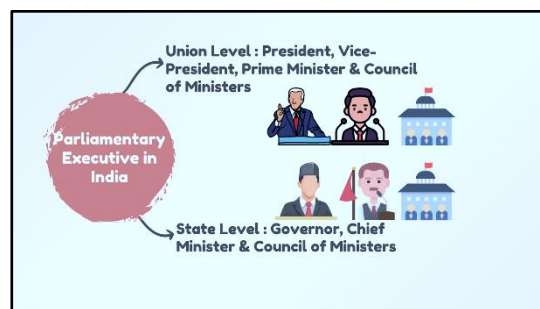
- ❖ The principle of **collective leadership** is found in the **Semi-Presidential system of government**.

- ❖ The head of the State is the President (who is very powerful in France) and the head of the Government is the Prime Minister.
- ❖ The President is elected by the people.
- ❖ The Prime Minister and the Council of Ministers are responsible to the Legislature.
- ❖ This system is slightly different from the Parliamentary system in the sense that the President usually appoints a member of his/her political party as Prime Minister and Council of Ministers.
- ❖ The President and Prime Minister usually belong to the same political party. The real power is vested in the hands of the President.
- ❖ There is a Semi-Presidential system of government in France, Sri Lanka, and Russia.

Presidential System	Semi-Presidential System	Parliamentary System
President is Head of State & Government 	Head of State is President Head of Government is Prime Minister 	Head of State is President & Head of Government is Prime Minister 
Executive not accountable to Legislature 	Executive accountable to Legislature 	Executive accountable to Legislature 
Real power with President 	Real power with President 	Real power with Prime Minister and Council of Ministers 

Parliamentary Executive in India:

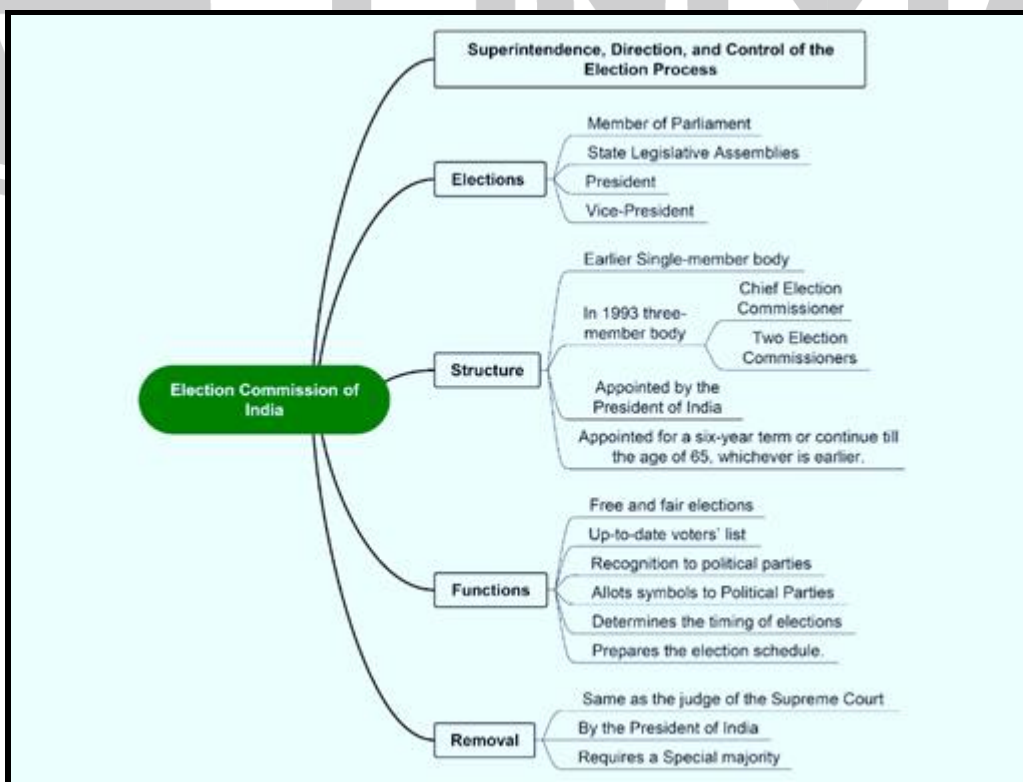
- ❖ The parliamentary system of government was introduced for the first time in British India through the Government of India Act of 1919.
 - The Government of India Act of 1935 also gave some ideas about the parliamentary system of government to the Indian people.
- ❖ After independence, the Constitution of India adopted the parliamentary system of executive for the governments both at the national and State levels.
- ❖ According to the Constitution of India:
 - The Prime Minister and all the Ministers together called as Council of Ministers (Executive arm of the government).



- The Council of Ministers is headed by the Prime Minister.
- The Council of Ministers is responsible to the Parliament, particularly the Lok Sabha.
- The real executive power is vested in the hands of the President.
- ❖ All the executive decisions of the Union of India shall be taken in the name of the President only. In reality, the President exercises these powers on the basis of advice given by the Council of Ministers headed by the Prime Minister.
- ❖ The President can ask the Council of Ministers to reconsider its advice once but, has to accept the reconsidered advice of the Council of Ministers.
- ❖ At the State level, the executive comprises the Governor, Chief Minister, and Council of Ministers.

Discretionary power of President of India

- ❖ The discretionary power means the power to act on his/her own.
- ❖ The assent of the President is necessary for the Bill passed by the Parliament to become an Act.



Lecture -17

Executive, Legislature (Part - I)

Executive, Legislature (Part - I)



Outline of Lecture

- ❖ Parliamentary Executives in India
- ❖ President
 - Discretionary Powers of President of India
- ❖ Vice-President
- ❖ Council of Ministers
- ❖ Prime Minister
- ❖ Permanent Executive/Bureaucracy/Civil Services
 - Classification of Civil Services

Parliamentary Executives in India:

Central or Union Level 	State Level 
The Executive consists of the President and the Council of Ministers .	The Executive consists of the Governor and the Council of Ministers .
The Council of Ministers includes the Prime Minister and other Ministers at the Central level.	The Council of Ministers includes the Chief Minister and other Ministers at the State level.
The President is the head of the country .	The Governor is the head of the State . The Governor is appointed by the President of India on the advice of the Council of Ministers (at Union level).
The President takes decisions on the advice of the Council of Ministers headed by the Prime Minister.	The Governor takes decisions on the advice of the Council of Ministers headed by the Chief Minister.

Additional Information:

- ❖ *Parliamentary Executive* means the executive can be effectively controlled by the representatives of the people or legislature i.e. the executive is dependent on the support of the majority in the Parliament. The Executive i.e. Council of Ministers (Prime Minister and other Ministers) is collectively responsible to the Lok Sabha. This provision means that a Ministry which loses the confidence of the Lok Sabha is obliged to resign.

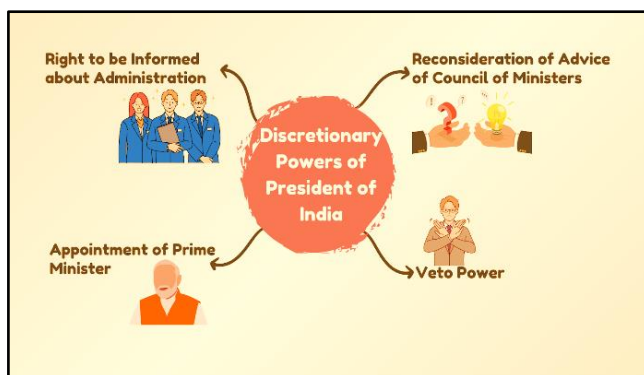
President:

- ❖ The Constitution of India vests the *executive power of the Union* formally in the President.
 - In reality, the President exercises these powers through the Council of Ministers headed by the Prime Minister.
- ❖ The President is elected for a period of *five years*.
 - But there is no direct election by the people for the office of President. The President is *elected indirectly*.
 - This means that the president is elected not by the ordinary citizens but by the *elected MLAs and MPs*.
 - This election takes place in accordance with the *principle of proportional representation with the single transferable vote*.
- ❖ The President can be removed from office only by *Parliament* by following the procedure for impeachment. The only ground for impeachment is a *violation of the Constitution*.

Discretionary Powers of the President of India:

Discretionary power means the *power to act on his/her own*. The discretionary powers of the President of India include:

- ❖ **Right to be Informed about Administration:** The President has the right to be informed by the Prime Minister about all the essential matters of the administration and deliberations of the Council of Ministers. The Prime Minister is obliged to furnish all the information that the President may call for.



- ❖ **Reconsideration of Advice of Council of Ministers:** The President acts on the advice of the Council of Ministers. The President can ask the Council of Ministers to *reconsider*

the advice once. In doing this, the President acts at his/her own discretion. After due consideration when the reconsidered advice is presented before the President again, then he/she must accept it.

❖ **Veto Power:**

- The assent of the President is necessary for the Bill passed by the Parliament to become an Act. The draft legislative proposal is called a Bill.
- After being passed by both the Houses of Parliament, the Bill is presented before the President for assent. The President has veto powers with respect to the Bill presented before him/her for assent.
- The President can send the bill back to the Parliament asking it to **reconsider the bill**. This 'veto' power is **limited** because, if the Parliament passes the same bill again and sends it back to the President, then, the President has to **give his assent** to that bill.
- The President can also take **no action** on the Bill and keep it **pending on the table** for time memorial. This is known as **Pocket Veto**. This can be done by the President as there is **no mention in the Constitution about the time limit** within which the President must send the bill back for reconsideration.
 - ✓ **Example:** The pocket veto was exercised by President Gyani Zail Singh in 1986 against the Indian Post Office (Amendment) Bill passed by the Parliament to curtail the freedom of the press.

❖ **Appointment of Prime Minister:**

- The President appoints the Prime Minister. Normally, in the parliamentary system, a leader who has the support of the majority in the Lok Sabha would be appointed as Prime Minister and the question of discretion would not arise.
- But imagine a situation when after an election, **no leader has a clear majority** in the Lok Sabha. Imagine further that after attempts to forge alliances, two or three leaders are claiming that they have the support of the majority in the house.
- Now, the President has to decide whom to appoint as the Prime Minister. In such a situation, the President has to use his own discretion in judging who really may have the support of the majority or who can actually form and run the government.

- ✓ **Example:** In 1998, Atal Bihari Vajpayee formed a coalition government i.e. NDA (National Democratic Alliance) in 1998. This could only win 251 seats in the Parliament whereas to form a government, the political party needs to win at least 272 seats in the Parliament. But at that time, no political party with or without a coalition was able to get the support of more than 251 seats in Parliament. In this case, the President exercised his discretionary power and called Atal Bihari Vajpayee to form the government.
- When political parties work together to establish a government, it is known as a **coalition government**. The typical justification for such a situation is that no single party has won an absolute majority following an election.

Vice-President:

- ❖ The Vice-President is elected for a period of 5 years.
- ❖ The Vice-President is elected in the same manner as the President i.e. by the method of proportional representation and single transferable vote.
- ❖ But unlike the President, the Members of Parliament (Lok Sabha and Rajya Sabha) only participate in the election process, and not the members of State legislatures.
- ❖ The proposal for the removal of the Vice-President must be initiated and passed by the Rajya Sabha, followed by the approval of Lok Sabha.
- ❖ The Vice-President is the *ex-officio* (automatically) **Chairman of the Rajya Sabha**.
- ❖ The Vice-President acts as the President in the following cases:
 - death of the President
 - dismissal of the President from office
 - resignation by the President.
- ❖ The Vice President acts as the President only until a new President is elected.
- ❖ **Example:** On the death of President Fakruddin Ali Ahmed in 1977 the then Vice President B.D. Jatti acted as the President until the new President was elected to the office.

Council of Ministers:

- ❖ The Council of Ministers consists of:
 - **Prime Minister:** The Prime Minister heads the Council of Ministers.

- **Cabinet Ministers:** They are the heads of important ministries of the Government of India. **Example:** The important ministries of Government include the finance ministry, defense ministry, home ministry, external affairs ministry, etc. headed by the Cabinet Ministers namely Nirmala Sitharaman, Rajnath Singh, Amit Shah, S. Jaishankar, etc. respectively.



- **Ministers of State:** They head the not so important ministries (like the Ministry of Law and Justice, Ministry of Earth Sciences, etc.) or assist the Cabinet Ministers.

- ❖ The Prime Minister and the Cabinet Ministers make all the important decisions of the Government.
- ❖ The Prime Minister allocates ranks and portfolios to the ministers. Depending upon the seniority and political importance, the ministers are given the ranks of cabinet minister or minister of state.
- ❖ The Council of Ministers shall not exceed 15 percent of the total number of members of the House of the People (or Assembly, in the case of the States). This was introduced by the 91st Amendment Act of 2003.

Prime Minister:

- ❖ The Constitution of India states that there shall always be a Council of Ministers headed by the Prime Minister.
- ❖ Formally, a leader who has the support of the majority is appointed by the President as Prime Minister. The Prime Minister then decides who will be the ministers in the Council of Ministers.
- ❖ The Prime Minister allocates the ministries among the Ministers.
- ❖ The Prime Minister communicates to the President all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals for legislation.
- ❖ The Council of Ministers cannot exist without the Prime Minister. The Council comes into existence only after the Prime Minister has taken the oath of office.

- The death or resignation of the Prime Minister automatically brings about the dissolution of the Council of Ministers (a new Council of Ministers is appointed on the advice of the newly appointed Prime Minister) but the demise, dismissal, or resignation of a minister only creates a ministerial vacancy. The Prime Minister advises another person to be appointed as the Minister by the President.
- ❖ The Prime Minister acts as a link between the Council of Ministers on the one hand and the President as well as the Parliament on the other. It is this role of the Prime Minister that led Pt. Nehru described him as 'the linchpin of Government'.
- ❖ The Council of Ministers is collectively responsible to the Lok Sabha. This provision means that a Ministry which loses the confidence of the Lok Sabha is obliged to resign.
 - It also indicates that if a minister does not agree with a policy or decision of the cabinet, he or she must either accept the decision or resign. It is binding on all ministers to pursue or agree to a policy for which there is collective responsibility.
- ❖ The Prime Minister and all the ministers have to be members of the Parliament. If someone becomes a minister or Prime Minister without being an MP, such a person has to get elected to the Parliament within six months.

Permanent Executive/Bureaucracy/Civil Services:

- ❖ The bureaucracy consists of the permanent employees of the government who are assigned the task of assisting the ministers in the formulation and implementation of policies.
- ❖ The bureaucracy is also expected to be politically neutral. This means the bureaucracy will not take any political position on policy matters.
- ❖ The bureaucracy helps maintain the continuity between the changing Governments.

Additional Information:

- ❖ The Union Public Service Commission has been entrusted with the task of conducting the process of recruitment of civil servants for the government of India. Similar public service commissions are provided for the States also. Members of the Public Service Commissions are appointed for a fixed term. Their removal or suspension is subject to a thorough inquiry made by a judge of the Supreme Court.

Classification of Civil Services:

❖ All India Services:

- It includes Indian Administrative Services (IAS), Indian Police Services (IPS), and Indian Forest Services (IFoS).

❖ Group A Services:

- It includes Indian Foreign Services (IFS), Indian Revenue Services (IRS), etc.

❖ Provincial Services: These are the administrative services within a specific state or province. Provincial Services Officers (PCS) play a crucial role in maintaining law and order, revenue collection, policy implementation, disaster management, elections, etc.



Additional Information:

- ❖ An IAS or IPS officer is assigned to a particular State, where he or she works under the supervision of the State government. However, the IAS or IPS officers are appointed by the central government, they can go back into the service of the central government, and most importantly, only the central government can take disciplinary action against them.
- ❖ This means that the key administrative officers of the States are under the supervision and control of the central government. Apart from the IAS and the IPS officers appointed by the UPSC, the administration of the State is looked after by officers appointed through the State Public Service Commissions.

Lecture -18

Legislature (Part - II)

Legislature (Part II)

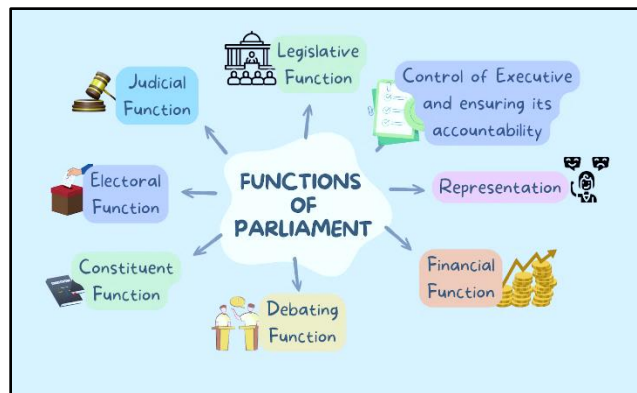


Outline of Lecture

- ❖ Purpose of Parliament
- ❖ Structure of Parliament
- ❖ Lok Sabha
- ❖ Rajya Sabha
- ❖ Types of Bills
- ❖ Powers of Lok Sabha and Rajya Sabha with respect to Different Matters in Parliament
- ❖ Three types of Lists
- ❖ Special Powers of Rajya Sabha

Purpose or Functions of Parliament:

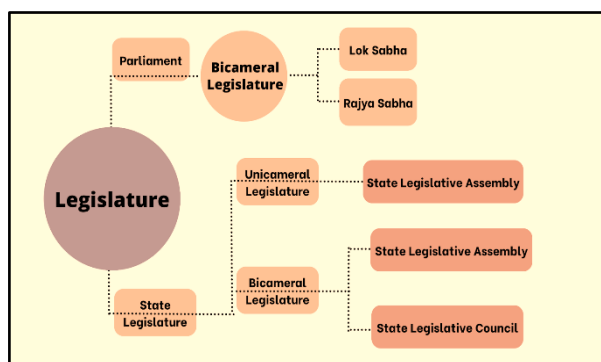
- ❖ **Legislative Function:** The Parliament is the law-making arm of the Government. It enacts legislation for the country.
- ❖ **Control of the Executive and ensuring its Accountability:**
 - Through the debates and discussions on the actual workings of the Government in Parliament, the masses get to know about the functioning of the Government and thus help form political opinions among them. This also helps people hold the Government accountable.
 - The Parliament ensures that the executive does not overstep its authority and remains responsible to the people who have elected them.



- ❖ **Representation:** The Parliament gives representation to various sections of the population of India. It represents the divergent views of members from different regional, social, economic, and religious groups in different parts of the country.
- ❖ **Financial Function:**
 - The Parliament decides how much money would be spent and for what purpose by the Government. The government has to give an account to the legislature about the money it has spent and the resources that it wishes to raise.
 - The legislature also ensures that the government does not misspend or overspend.
- ❖ **Debating Function:**
 - The Parliament is the highest forum of debate and discussions in the country.
 - This makes it possible for the Parliament to analyze any or every issue that faces the nation. These discussions constitute the heart of democratic decision-making.
- ❖ **Constituent Function:** The Parliament has the power of discussing and enacting changes to the Constitution.
- ❖ **Electoral Function:** The Parliament also performs some electoral functions. It elects the President and Vice-President of India.
- ❖ **Judicial Function:** The judicial functions of the Parliament include considering the proposals for the removal of the President, Vice-President, and Judges of High Courts and Supreme Court.

Structure of Parliament:

- ❖ The legislative arm of India is called the Parliament.
- ❖ The Parliament in India has two houses. When there are two houses of the legislature, it is called a bicameral legislature.
 - The Constitution has given the States the option of establishing either a unicameral (State Legislature having only one House i.e. State Legislative Assembly) or bicameral legislature (State Legislature having two Houses i.e. State Legislative Assembly and State Legislative Council).



- At present only six States have a bicameral legislature. These include Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana and Uttar Pradesh.
- Advantages of Bicameral Legislature:
 - ✓ **Better Representation:** Countries with large size and diversity usually prefer to have two houses of the national legislature to give representation to all sections of the society and to give representation to all geographical regions or parts of the country.
 - ✓ **Better Legislation:** A bicameral legislature makes it possible to have every decision reconsidered. Every decision taken by one house goes to the other house for its decision. This ensures a double-check on every matter.

❖ The two Houses of Parliament include:

1. Lok Sabha or Lower House or House of People
2. Rajya Sabha or Upper House or Council of States

Lok Sabha:

- ❖ The Lok Sabha is also called the Lower House of Parliament.
- ❖ The members are directly elected by the people. The members work as representatives of the people. Therefore this House of Parliament is also known as the House of People.
- ❖ For the purpose of the Lok Sabha election, the whole country will be divided into 543 constituencies. One representative winning the election from each constituency will occupy the seat in Lok Sabha.
- ❖ The leader of the political party having the majority support in the Lok Sabha (i.e. winning more than or equal to 272 seats) will become the Prime Minister of India and form the Government at the Union level.
- ❖ The Lok Sabha is elected for a period of five years.
 - Before the completion of five years, the Lok Sabha can be dissolved if the Prime Minister advises the President to dissolve the Lok Sabha and hold fresh elections. It can also be dissolved if the President feels that no viable government can be formed after the resignation or fall of a regime.

Rajya Sabha:

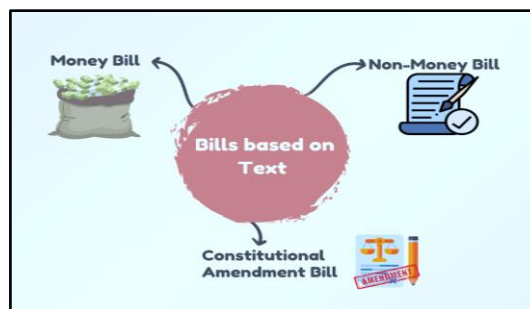
- ❖ The Rajya Sabha is also called the Upper House of Parliament.

- ❖ The Rajya Sabha represents the States of India. Its purpose is to protect the powers of the States. Therefore, any matter that affects the States must be referred to it for its consent and approval.
- ❖ The members are indirectly elected by the members of State Legislative Assemblies. Therefore this House of Parliament is also known as the Council of States.
 - The people of the State elect members to the State Legislative Assembly. The elected members of the State Legislative Assembly in turn elect the members of the Rajya Sabha.
- ❖ The States are allocated seats in the Rajya Sabha on the basis of population.
 - **Example:** Uttar Pradesh has the largest population in the country and thus has the largest number of seats in the Rajya Sabha i.e. equal to 31 whereas Sikkim has the smallest population in India and thus has only 1 seat in the Rajya Sabha.
 - In the US, there are 50 States and each State is allotted 2 seats in the Senate.
 - ✓ In the US, the legislature is called the Congress, which consists of two Houses:
- 1. Upper House or Senate
- 2. Lower House or House of Representatives.
- ❖ Members of the Rajya Sabha are elected for a term of six years. They can get re-elected.
 - All members of the Rajya Sabha do not complete their terms at the same time. Every two years, one-third of members of the Rajya Sabha complete their term and retire, and elections are held for those one-third seats only.
 - Thus, the Rajya Sabha is never fully dissolved. Therefore, it is called the Permanent House of Parliament.
- ❖ Apart from the elected members, the Rajya Sabha also has twelve nominated members. The President nominates these members.
 - These nominations are made from among those persons who have made their mark in the fields of literature, science, art, and social service.
- ❖ The debates and discussions are very fair and balanced as compared to Lok Sabha.

Types of Bills:

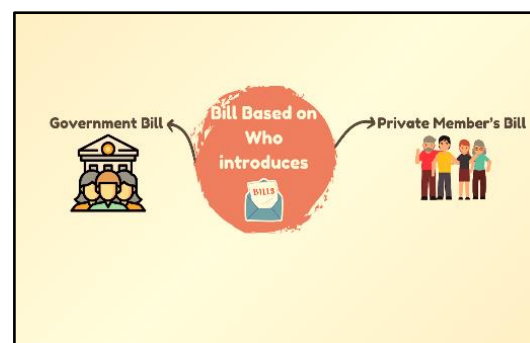
- ❖ There are three types of Bills, based on the matter inside the Bill:

1. **Money Bills:** These include resolutions related to financial matters.
2. **Non-Money Bills:** These include resolutions related to matters other than financial matters.
3. **Constitutional Amendment Bill:** These include resolutions related to the amendment of the Constitution.



❖ There are two types of Bills, based on who introduces the Bill in the Parliament:

1. **Government Bill:** It includes Bills introduced by the Government members, which includes all the Ministers of the Government.
2. **Private Member's Bill:** It includes Bills introduced by the private members, which includes all members of Parliament except the Ministers.



Powers of Lok Sabha and Rajya Sabha with respect to Different Matters in Parliament:

Different Matters	Power of Lok Sabha	Power of Rajya Sabha
Passage of Money Bills	❖ Lok Sabha has the upper hand in the passage of the Money Bill. ❖ The approval of only Lok Sabha is necessary for the passage of the Money Bill. ❖ Lok Sabha may or may not accept the amendments suggested by the Rajya Sabha. ❖ The President must give assent to the Money Bill	❖ The Rajya Sabha can either approve the bill or suggest changes but cannot reject it. ❖ If it takes no action within 14 days the bill is deemed to have been passed by both the Houses of Parliament.

	presented before him/her after being passed in the Parliament.	
Passage of Non-Money Bills	❖ Both Lok Sabha and Rajya Sabha have equal powers with respect to the passage of the Non-Money Bill. ❖ In case of disagreement between the two Houses with respect to the passage of the Non-Money Bill called impasse or deadlock, the Constitution of India provides for the joint sitting of the two Houses of Parliament. ❖ The deadlock between the Houses of Parliament arises in the following cases: 1. Rajya Sabha/Lok Sabha passes the Bill whereas the Lok Sabha/Rajya Sabha rejects it 2. Rajya Sabha/Lok Sabha suggests some amendments to the Bill but the Lok Sabha/Rajya Sabha refuses to approve those amendments. ❖ After being passed by both Houses of Parliament, the Bill is presented to the President. The President can give assent to the Bill or use veto power in case of a Non-Money Bill.	
Passage of Constitutional Amendment Bills	❖ Both Lok Sabha and Rajya Sabha have equal powers with respect to the passage of the Constitutional Amendment Bill. ❖ In case of any disagreement between the two Houses of Parliament on a Constitution Amendment Bill, there cannot be a joint sitting of the Houses of Parliament on the Bill. In this case, the Bill ends. ❖ After being passed by both Houses of Parliament, the Bill is presented to the President. The President must give assent to the Constitutional Amendment Bill.	

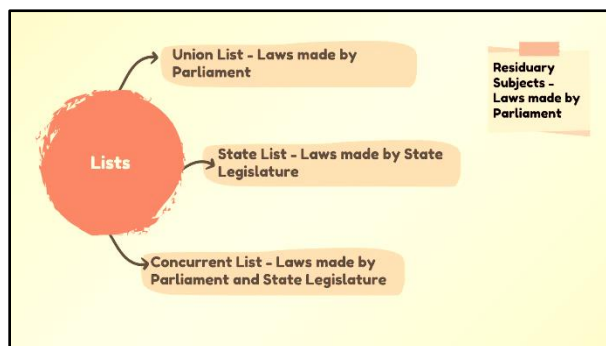
Election of President and Vice-President	❖ Both Lok Sabha and Rajya Sabha have equal powers with respect to the election of President and Vice-President.	
Impeachment of President	❖ Both Lok Sabha and Rajya Sabha have equal powers with respect to the impeachment of the President.	
Removal of Judges of the Supreme Court and High Courts	❖ Both Lok Sabha and Rajya Sabha have equal powers with respect to the removal of Judges of the Supreme Court and High Courts.	
Removal of Vice-President	❖ The Lok Sabha just approves the resolution for the removal of the Vice-President after being passed by the Rajya Sabha.	❖ The Rajya Sabha has the upper hand in the removal of the Vice-President ❖ The resolution for the removal of the Vice-President must be initiated and first passed in the Rajya Sabha only , followed by approval of Lok Sabha.

Three types of Lists:

The Constitution of India provides for three types of Lists:

1. Union List:

- It includes all the matters **related to the Central or Union level**.
- **Example:** Defence, currency, etc. are matters concerning the whole of India and are thus included in the Union List.
- The **Parliament** is empowered to **make laws** on the subjects included in the Union List.



2. State List:

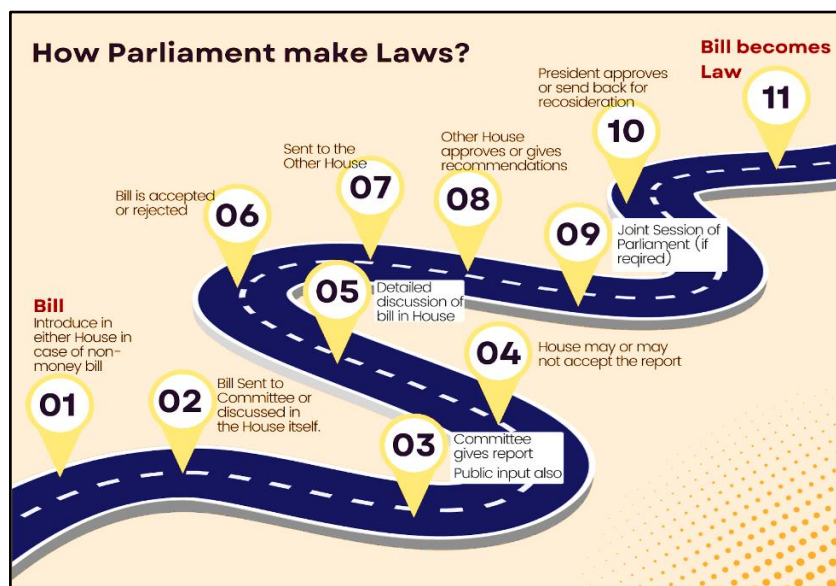
- It includes all the matters related to the affairs of the States.
- **Example:** Law and order, agriculture, etc. are matters that require different approaches for different States and are thus included in the State List.
- The **State Legislature** is empowered to make laws on the subjects included in the State List.

3. Concurrent List:

- It includes matters that are important for both the Centre as well as States.
- **Example:** Education, etc.
- Both the **Parliament and State Legislature** can make laws on the subjects included in the Concurrent List.
- But in case of conflict between the laws made by the Union and State on the same matter, the **Union law** will prevail over the State law.
- ❖ There are some subjects that are not included in any of the above Lists, which are called the **residuary subjects**. The power to make laws on the residuary subjects lies with the **Parliament**.

Special Powers of Rajya Sabha:

- ❖ With the approval of the Rajya Sabha, the Parliament can frame law on a subject included in the State List.



Lecture -19

Legislature (Part III), Judiciary

Legislature (Part III), Judiciary



Outline of Lecture

- ❖ Instruments of Parliamentary Control
- ❖ Regulation of Parliament by Itself
- ❖ Need for Independent Judiciary
- ❖ Structure of Judiciary
- ❖ Jurisdiction of Supreme Court
- ❖ Judicial Activism
- ❖ Public Interest Litigation (PIL) or Social Action Litigation (SIL)

Instruments of Parliamentary Control:

❖ Deliberations and Discussions:

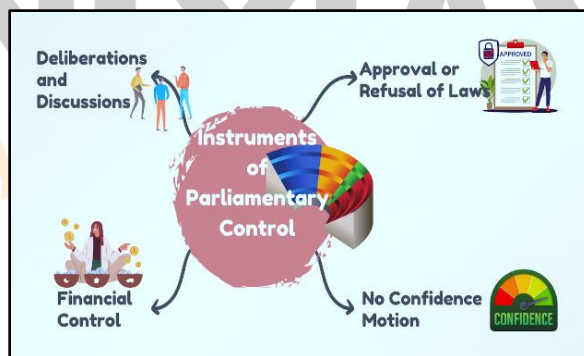
- In the Parliament, the Member of Parliament (MPs) can *debate, discuss and ask questions* on different issues from the Government.
- This gives the members an opportunity to *criticize the Government* and represent the *problems of their constituencies*.

❖ Approval or Refusal of Laws:

- The Parliament is the **law-making arm** of the Government. A **bill** can become a **law** only with the **approval** of the Parliament.
- Thus it depends on the will of the Parliament to make a law through its approval or not to make a law through its rejection.
- Rejection of a bill is only possible if the Government does **not** enjoy **majority support** (i.e. equal to or more than 272 seats in the Lok Sabha) in the Parliament.

❖ Financial Control:

- The Parliament exercises financial control over the Union Government by approving the **annual budget** for the Government. The preparation and presentation of the



budget for the approval of the legislature is a **constitutional obligation** of the government.

- But the legislative control is not only aimed at financial propriety. The legislature is concerned about the policies of the government that are reflected in the budget. Through financial control, the legislature **controls the policy of the government**.

❖ **No Confidence Motion:**

- The Parliament passes a no-confidence motion against the Government when it **loses faith in the Government** i.e. the Government no longer enjoys the **majority support in the Parliament**, particularly Lok Sabha.
- **Example:** The Government led by Prime Minister Atal Bihar Vajpayee was dissolved 13 days after coming into power after it failed to get the majority on the floor of the house and lost the no-confidence motion by just one vote.

Regulation of Parliament by Itself:

- ❖ The responsibility of maintaining the **discipline and decorum of the House** rests with the **presiding officer of the House** (head of the House). The presiding officer of the legislature is the **final authority** in matters of regulating the business of the legislature.
 - The presiding officer in the Lok Sabha is called the **Speaker** whereas the presiding officer of the Rajya Sabha is called the **Chairman**.
 - The **Vice-President** is the **ex-officio Chairman** of the Rajya Sabha.
- ❖ The presiding officers also control the behavior of the members through **Anti-Defection law**.
 - It was introduced by the **52nd Constitutional Amendment Act, of 1985** in India. It has also been subsequently modified by the **91st Constitutional Amendment Act of 2003**.
 - The Anti-Defection law provides for the **disqualification of members of Parliament and State Legislature** on grounds of defection.
 - **Defection** means:



1. if a member remains **absent** in the House when asked by the party leadership to remain present
 2. if a member **votes against** the instructions of the party or
 3. if a member **voluntarily leaves** the membership of the party.
- The **presiding officer** of the House is the authority who makes **final decisions** on all such cases.

Judiciary:

Need for Independent Judiciary:

- ❖ In any society, disputes are bound to arise among individuals. All such disputes must be settled in a fair manner without any bias and to ensure this we need an independent judiciary.
- ❖ The principal role of the judiciary is to **protect the rule of law and ensure the supremacy of law**. It **safeguards the rights of the individual**, settles disputes in accordance with the law, and ensures that democracy does not give way to individual or group dictatorship. In order to be able to do all this, it is necessary that the **judiciary is independent of any political pressures**.
- ❖ The **independence of the judiciary means that:**
 - the other organs of the government like the executive and legislature must **not interfere and restrain** the functioning of the judiciary in such a way that it is unable to do justice.
 - **judges** must be able to perform their functions **without fear or favor**.
- ❖ Independence of the judiciary does not imply **arbitrariness or absence of accountability**. The judiciary is accountable to the Constitution, to the democratic traditions, and to the people of the country.
- ❖ The **Constitution of India** has provided certain provisions to **ensure the independence of the judiciary** related to the:
 - Appointment of Judges
 - Removal of Judges
 - Financial Independence from Executive or Legislature

Appointment of Judges:

- ❖ The Constitution of India provides that the Judges of the Supreme Court and High Courts shall be appointed by the President of India in consultation with the Chief Justice of India.
- ❖ But in reality, the President exercises all his/her powers on the basis of the advice of the Council of Ministers headed by the Prime Minister. Thus, Judges are practically appointed by the Government.
- ❖ This led to a long legal battle between the judiciary and the government from 1982 to 1998 to decide who would appoint the judges in India – the Judiciary (Chief Justice of India) or the Government (President).
- ❖ Finally in 1998, the Supreme Court ruled that:
 - the Chief Justice of India should recommend names of persons to be appointed in consultation with four senior-most judges of the Court. Thereafter, the President shall appoint the Judges based on the recommendations of the Chief Justice of India, which is binding on the President.
- ❖ In 1993, the Supreme Court ruled that while appointing the Chief Justice of India, the President shall take into account the seniority principle i.e. the senior most Judge of the Supreme Court shall be appointed as the Chief Justice of India.
 - The seniority principle has been violated only two times while appointing the Chief Justice of India. In 1973 A. N. Ray was appointed as CJI superseding three senior Judges. Again, Justice M.H. Beg was appointed superseding Justice H.R. Khanna in 1975.



Removal of Judges:

- ❖ The Constitution of India has provided a very difficult process for the removal of Judges of the Supreme Court and High Courts to provide them the security of tenure.
- ❖ The judges shall be removed only on the grounds of:
 1. proven misbehavior or
 2. incapacity.

- ❖ The resolution for the removal of judges shall be passed by both Houses of Parliament with a special majority i.e. two-thirds of the members present and voting and it should be more than half of the total strength of the House.
- ❖ It must be noted that in making appointments, the executive plays a crucial role whereas the legislature has the powers of removal. This has ensured both the balance of power and independence of the judiciary.
- ❖ In 1991 the first-ever resolution to remove a High Court Justice V. Ramaswami was introduced in the Parliament. But the resolution was defeated in the Parliament. In 2015, again the resolution for the removal of a High Court Justice Soumitra Sen was introduced in the Parliament. He resigned from the office before the initiation of the voting process for the removal in Parliament.
- ❖ Thus no judges were removed in India till now.

Financial Independence from Executive or Legislature:

- ❖ The Constitution provides that the salaries and allowances of the judges are not subjected to the approval of the legislature.
- ❖ The actions and decisions of the judges are immune from personal criticism. The judiciary has the power to impose punishment those who are found guilty of doing it.
- ❖ Parliament cannot discuss the conduct of the judges except when the proceeding to remove a judge is being carried out. This gives the judiciary independence to adjudicate without fear of being criticized.



Mains 2023 Question:

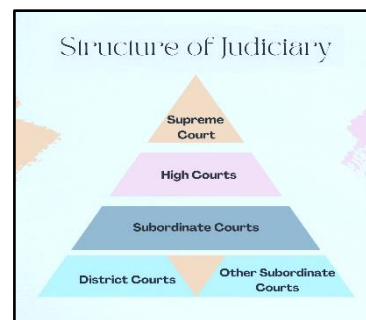
“Constitutionally guaranteed judicial independence is a prerequisite of democracy”.

Answer: The Constitution of India has provided certain provisions to ensure the independence of the judiciary:

- ❖ Appointment of Judges
- ❖ Removal of Judges
- ❖ Financial Independence from Executive or Legislature

Structure of Judiciary

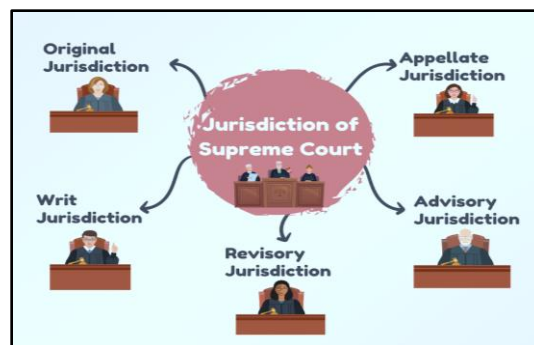
- ❖ The structure of the judiciary in India is pyramidal with the Supreme Court at the top, High Courts below them, and Subordinate courts at the lowest level.
- The Subordinate Courts include the District Courts and Other Subordinate Courts.



Supreme Court of India	❖ Its decisions are binding on all the Courts. ❖ It can transfer the Judges of High Courts. ❖ It can transfer the cases from one High Court to another High Court. ❖ It can move cases from any court to itself. ❖ It can issue writs for restoring Fundamental Rights under Article 32.
High Court	❖ It can hear appeals from lower courts. This means that the decisions of lower courts can be challenged in the High Court. ❖ It can issue writs for restoring Fundamental Rights under Article 226. ❖ It can deal with cases within the jurisdiction of the State. ❖ It can exercise superintendence and control over courts below it.
District Court	❖ It decides cases involving serious criminal offenses. ❖ It considers appeals on decisions given by Subordinate Courts. ❖ It deals with cases arising in the District.
Other Subordinate Courts	❖ It consider cases of civil and criminal nature.

Jurisdiction of Supreme Court:

1. Original Jurisdiction
2. Appellate Jurisdiction
3. Writ Jurisdiction
4. Advisory Jurisdiction
5. Revisory Jurisdiction



Original Jurisdiction	❖ It means cases can be directly considered by the Supreme Court without approaching the lower courts before. ❖ The Supreme Court has the power to solve disputes between the Centre and State as well as among States by means of Original Jurisdiction. ❖ The decisions of the Supreme Court shall be final and binding on all the parties.
Appellate Jurisdiction	❖ The Supreme Court is the final court of appeal. ❖ It tries appeals from lower courts in civil, criminal, and constitutional cases. Thus, it possesses a wide Appellate Jurisdiction.
Writ Jurisdiction	❖ The Supreme Court can issue writs of Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo warranto for the restoration of the Fundamental Rights of individuals.
Advisory Jurisdiction	❖ The President can ask for advice from the Supreme Court on matters of public importance and law. ❖ The Supreme Court is not bound to give advice on such matters and the President is not bound to accept the advice.
Revisory Jurisdiction	❖ The decisions of the Supreme Court are binding on all Courts. ❖ The Supreme Court itself is not bound by its previous decisions and can at any time review its own judgment or order.

Judicial Activism:

- ❖ Activism means when holders of certain offices go beyond their stated goals and responsibilities.

- ❖ When the judiciary works beyond its stated goals and responsibilities, then it is called **Judicial Activism**. The judiciary starts playing an **assertive role**.
 - **Example:** Suppose the incidence of crimes increased in Delhi. The Supreme Court calls the Police Commissioner of Delhi and asks him/her to control the crime. The role of the judiciary is not to control crime but it does so to make the official accountable to the people and restore democracy. Thus, Judicial Activism denotes the proactive role played by the judiciary in the protection of the rights of the citizens and the promotion of justice in society.
- ❖ The impacts of judicial activism include:
 - It has democratized the judicial system by giving not just to individuals but also groups access to the courts.
 - It has forced the accountability of the executive by forcing it to discharge their constitutional duties.
 - The judiciary has protected and expanded individual rights by implementing constitutional principles when the executive and legislature fail to do so.
- ❖ The judiciary exercises judicial activism through the instrument of **Public Interest Litigation (PIL)** or **Social Action Litigation (SIL)**.

Public Interest Litigation (PIL) or Social Action Litigation (SIL):

- ❖ This concept was **first** developed in the **US**.
- ❖ In the normal course of law, an individual can approach the courts only if he/she has been personally aggrieved.
- ❖ In 1979, the Supreme Court set the trend when it decided to hear a case where the case was filed not by the aggrieved persons but by others on their behalf.
- ❖ When public-spirited citizens and voluntary organizations approach the Supreme Court for the protection of existing rights, betterment of life conditions of the poor, protection of the environment, and any other issues in the interest of the public, then it is known as Public Interest Litigation.
- ❖ The Supreme Court began considering many cases merely on the basis of newspaper reports and postal complaints received by the court.

- ❖ There is however a *negative side* to the large number of PILs and the idea of a proactive judiciary.
 - It has *overburdened the courts*.
 - It has *blurred the line of distinction* between the executive and legislature on the one hand and the judiciary on the other. The court has been involved in resolving questions that belong to the executive.
 - ✓ The judicial activism has made the balance among the three organs of government very delicate. Democratic government is based on each organ of government respecting the powers and jurisdiction of the others. Judicial activism may be creating strains on this democratic principle.



Lecture -20

Judiciary, Federalism and Local Self Government

Judiciary, Federalism and Local Self Government

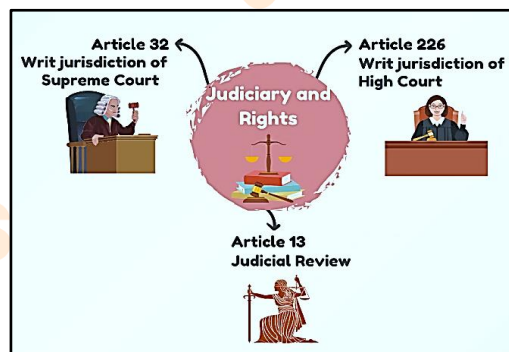


Outline of Lecture

- ❖ Judiciary and Rights
- ❖ Judiciary and Parliament
- ❖ Federalism
- ❖ Federalism in the Indian Constitution
- ❖ Distribution of Power by Indian Constitution
- ❖ Indian Federalism With Strong Central Government
- ❖ Conflicts in India's Federal System
- ❖ Special Provisions for Some States

Judiciary and Rights:

One of the main responsibilities of judiciary is to protect the rights of individuals. The Constitution of India provides two ways in which the Supreme Court or High Court can remedy the violation of rights:



❖ Writ jurisdiction of Supreme Court (Article 32) and High Court (Article 226):

- In India, everybody has been given some rights called **Fundamental Rights**, which cannot be violated by the State.
- In case of violation of the fundamental right, the **aggrieved individual** can directly approach the **Supreme Court** for the restoration of rights under **Article 32**. The Supreme Court issues different kinds of **writs** to restore fundamental rights, called the writ jurisdiction of the Supreme Court.
- The **High Court** is also empowered to issue **writs** for the restoration of fundamental rights under **Article 226**.
- Unlike the High Court, the Supreme Court is under a constitutional obligation to restore the fundamental rights of the aggrieved person because the **right to constitutional remedies** is a fundamental right under **Article 32**.

❖ **Judicial Review under Article 13:**

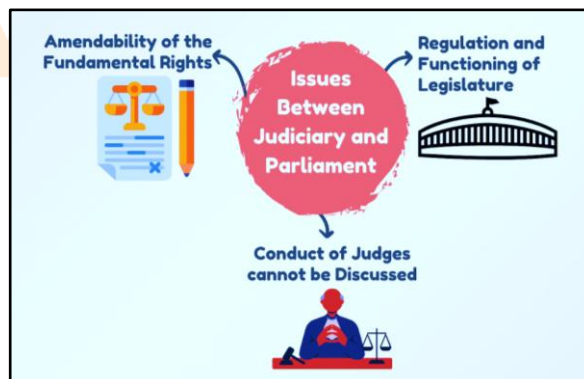
- Judicial review is known as the power of the Supreme Court (or High Court) to review any law made by the Central and State Governments of India. On examination, if it is found that any such law violates fundamental rights, then the judiciary shall declare such law as unconstitutional and invalid (null and void).
- The review power of the Supreme Court includes the power to review legislation on the ground that it violates fundamental rights or on the ground that it violates the federal distribution of powers.
- The concept of judicial review has been given explicitly under Article 13 and also implicitly under certain other provisions (like Article 226) of the Constitution of India. However, the term judicial review is nowhere mentioned in the Constitution.
- Article 13 declares that all laws that are inconsistent with or in derogation of the Fundamental Rights shall be null and void.
- The Constitution establishes the Supreme Court as the protector of the fundamental rights of the citizen on the one hand and interpreter of the Constitution on the other.

Judiciary and Parliament:

There are certain bone of contentions between the Parliament and Judiciary, which includes:

❖ **Amendability of the Fundamental Rights:**

- A long legal battle began between the Government and Judiciary regarding the amendability of fundamental rights (Ex: Right to Property).
- Finally in the *Kesavananda Bharti vs State of Kerala Case of 1973*, the Supreme Court innovated the 'Doctrine of Basic Structure'. According to this doctrine, Parliament can amend any part of the Constitution provided it does not destroy the basic structure of the Constitution.



- Although the Supreme Court refused to precisely explain what all aspects are part of the basic structure, it has described what constitutes the basic structure from time to time.
- The Supreme Court also said that the right to property was not part of the basic structure of the Constitution, and therefore, Parliament had the power to abridge this right by an amendment.
- The 44th Constitutional Amendment Act of 1978 removed the right to property as a fundamental right and instead it became a legal right under Article 300 A.

❖ **Regulation and Functioning of Legislature:**

- In the parliamentary system, the legislature has the power to govern itself and regulate the behaviour of its members. Thus, the legislature can punish a member of the House whom it holds guilty of breaching the privileges of the House.
- There are certain instances where the judiciary also intervenes in these cases and provides the remedy to the members of the legislature.
- The judiciary has also criticized the legislatures and issued instructions to the legislatures about the conduct of legislative business. The legislatures see this as violating the principle of parliamentary sovereignty.

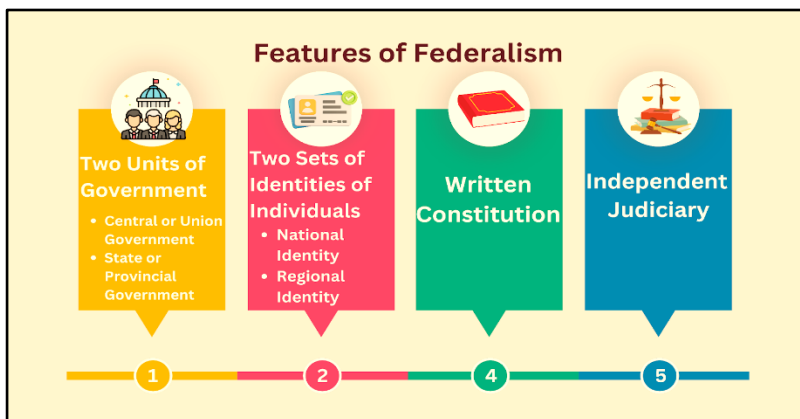
❖ **Conduct of Judges cannot be Discussed:**

- The Constitution provides that the conduct of judges cannot be discussed in the Parliament.
- There have been several instances where the Parliament and State legislatures have cast aspersions on the functioning of the judiciary.

Federalism:

❖ Federalism is an institutional arrangement under which:

- There are two units of government i.e. one at the national level called Central or Union Government and the other at the regional



level called **State Government** or **Provincial Government**. Each government is **autonomous** in its own sphere, which frames **two sets of policies**.

- The individuals have **two sets of identities**, one being the **national identity** (Indian national) and the other being the **regional identity** (being the resident of a particular State like Gujarati, Marathi, etc.).
- The **powers** are clearly **divided** between the Centre and States by a **written constitution**, which is considered to be the **supreme law** of the land. A written constitution specifies the powers of the two units and thus helps prevent confusion and conflict.
- There is an **independent judiciary** to **resolve the disputes** between the Centre and States. The decision of the judiciary shall be final and binding.

❖ The **US, India, etc.** are an example of federal countries.

Federalism in the Indian Constitution:

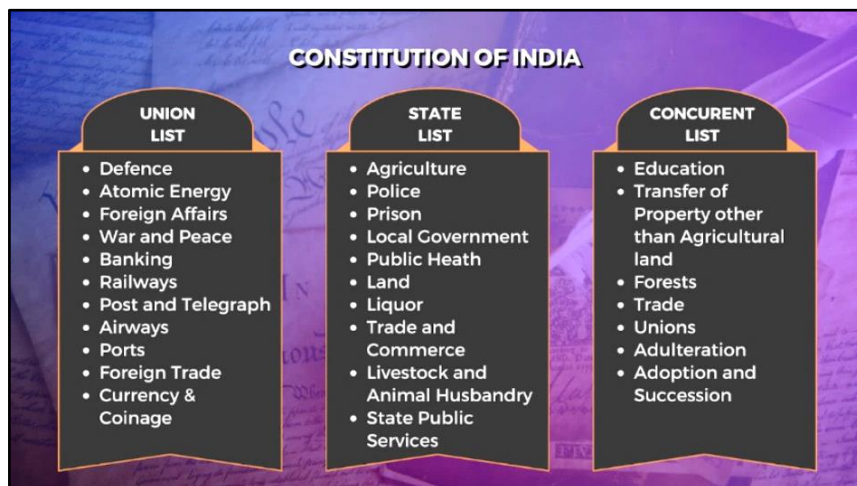
- ❖ The past experience of a painful partition of the country into India and Pakistan taught the Constitution makers that India as a country should have a strong Centre and comparatively weak States. A weak Centre would encourage the smaller states to separate themselves and declare their independence.
- ❖ The Constituent Assembly decided to frame a government that would be based on the **principles of unity and cooperation between the Centre and the States** and **separate powers to the States**. Thus, while recognizing diversity, the Constitution emphasized unity.
- ❖ The **Constitution of India** does not even mention the word **federation**.

Distribution of Power by Indian Constitution:

- ❖ There are two sets of government created by the Indian Constitution: one for the entire nation called the **Union Government** (Central Government) and one for each unit or State called the **State Government**.
- ❖ The Indian Constitution divides power between the Centre and States through **three Lists** i.e.

Union List	❖ It includes all the matters related to the Central or Union level. ❖ The Parliament is empowered to make laws on the subjects included in the Union List.
State List	❖ It includes all the matters related to the affairs of the States. ❖ The State Legislature is empowered to make laws on the subjects included in the State List. ❖ But sometimes, with the approval of the Rajya Sabha, the Parliament can frame law on a subject included in the State List.
Concurrent List	❖ It includes matters that are important for both the Centre and the States. ❖ Both the Parliament and State Legislature can make laws on the subjects included in the Concurrent List. ❖ But in case of conflict between the laws made by the Union and the State on the same matter, the Union law will prevail over the State law.

Residuary List: There are some subjects that are not included in any of the above Lists. These are called the **residuary subjects** in the residuary list. The power to make laws on the residuary subjects lies with the **Parliament**. Examples: Cyber laws, Artificial Intelligence, etc.

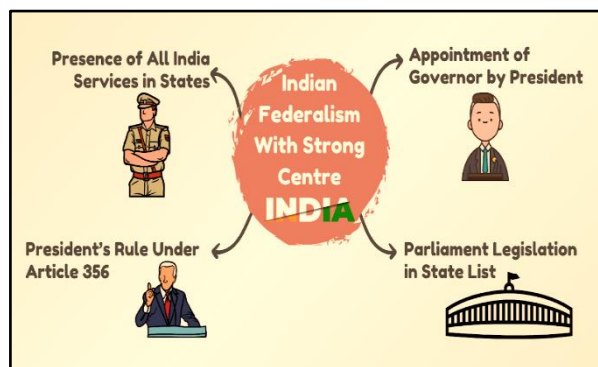


Indian Federalism With Strong Central Government:

The Indian Constitution has created a strong central government to *stem disintegration, promote unity, and bring about social and political change*. Also the socio-economic problems of the country needed to be handled by a strong central government in cooperation with the States. The provisions of the Indian Constitution that create a strong Central Government include:

❖ Presence of All India Services (AIS) in States:

- The examination for the recruitment of candidates into the All India Services (Indian Administrative Services, Indian Police Services, Indian Forest Services) is conducted by the Central Government.
- Although the officials of AIS are recruited and controlled by the Central Government, they are allotted different cadres and work under the State Government.
- States can neither take disciplinary action nor can they remove these officers from service. This can solely done by the Central Government.



❖ Appointment of Governor by President:

- The Governor for different States of India is appointed by the President of India on the advice of the Council of Ministers headed by the Prime Minister.
- As the head of the State, the Governor has certain powers with respect to the administration of the State like reservation of the Bill passed by the State Legislature for the assent of the President, etc. This gives the central government an opportunity to delay the State legislation and also to examine such bills and veto them completely.

❖ President's Rule Under Article 356:

- The President imposes President's Rule or State Emergency in a State if the Governor reports in writing that the Government of the State is not carried on in accordance with the Constitution. Thereafter, the State Government is dismissed.

- The entire federal polity gets converted into a highly centralized system once the emergency is declared.
- Parliament assumes the power to make laws on subjects within the jurisdiction of the States i.e. State List.

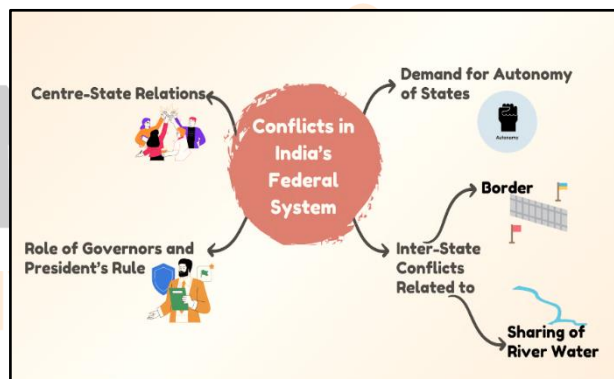
❖ **Parliament Legislation in State List:**

- Normally, the State Legislature is empowered to make laws on the subjects included in the State List. But sometimes, with the approval of the Rajya Sabha, the Parliament can frame law on a subject included in the State List.
- The Constitution clearly states that the executive powers of the Center are superior to the executive powers of the States.

Conflicts in India's Federal System:

❖ **Centre-State Relations:**

- There have been many instances of the misuse of Article 356.
- The Congress party formed the Government both at the Centre and in States from 1952 to 1967. Therefore there was no conflict between the Centre and the States.



- The conflict between them arose after 1967 when different political parties formed Government at the Centre and States. In 1967, for the first time, the Congress party failed to form government in almost 9 States and thus opposition political parties formed the government in those States.
- It resulted in demands for greater powers and greater autonomy for the States. The States protested against the unnecessary interference in their governments by the Congress government at the Centre and the misuse of Article 356.
- Although Dr BR Ambedkar said in the Constituent Assembly that the emergency provision should be used sparingly and under exceptional circumstances. Therefore, he called the emergency provisions “a dead letter of the Constitution”. But in reality, this proved to be the “death letter for the Constitution”.

❖ **Demand for Autonomy of States:**

- The States are demanding more autonomy and less interference from the Centre in their administration.
- The economic and financial powers are centralized in the hands of the central government by the Constitution. The financial subjects are included more in the Central List than the State List. Thus the States have fewer avenues for collecting revenues. The States have immense responsibilities but very meager revenue sources. They have to depend on the Centre for the financial resources.
- Therefore around the 1960s, a demand arose among several States like West Bengal, Tamil Nadu, Punjab, etc. to grant them more powers or autonomy in their administration and also rejected the imposition of the Hindi language.

❖ **Role of Governors and President's Rule:**

- The Governor is appointed by the President on the advice of the Council of Ministers headed by the Prime Minister. Therefore, the actions of the Governor are often viewed as interference by the Central government in the functioning of the State government.
- There were many instances when the Governor misused the power of Article 356 and thus advised the imposition of President's Rule in the State. The Governor started acting as the agent of the Centre. This has created a rift between Centre-State relations.
- The Sarkaria Commission appointed by the Central Government in 1983 (it submitted its report in 1988), to improve the Centre-State relations recommended that the Governor:
 - ✓ should be appointed on the advice of the Chief Minister
 - ✓ appointed should be a political neutral person
 - ✓ appointed must be an eminent person in certain walks of life.

❖ **Inter-State Conflicts:**

Two types of disputes keep recurring between the States namely:

1. Border Disputes:

- States have certain claims over territories belonging to neighboring States. Though language is the basis of defining boundaries of the States, border areas often have populations speaking more than one language. So, it is not easy to resolve this dispute merely on the basis of linguistic majority.

- One of the longstanding border disputes is the *dispute between Maharashtra and Karnataka over the city of Belgaum*. Manipur and Nagaland too, have a long-standing border dispute.

2. Disputes Related to the Sharing of River Water:

- The *Cauvery water dispute* is a major issue between Tamil Nadu and Karnataka. Farmers in both the States are dependent on Cauvery waters. Though there is a river water tribunal to settle water disputes, this dispute has reached the *Supreme Court*. This dispute has *not been resolved yet*.
- The *Narmada water dispute* is between Gujarat, Maharashtra, and Madhya Pradesh.

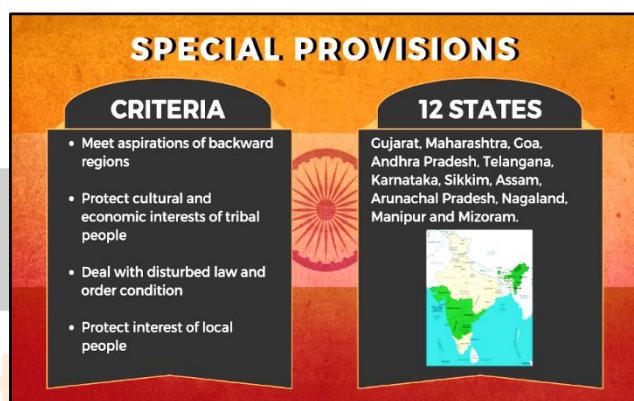
Special Provisions for Some States:

- ❖ Many States in India get a *differential treatment*. The Indian Constitution has some *special provisions* for some States given their peculiar social and historical circumstances.

- ❖ The Indian Constitution provides special provisions to States to:

- *meet the aspirations of the people of backward regions of the States*
- *protect the cultural and economic interests of the tribal people of the States*
- *deal with the disturbed law and order condition in some parts of the States*
- *protect the interest of the local people of the States.*

- ❖ Special provisions were provided for Gujarat (Saurashtra region), Maharashtra (Marathwada region), Andhra Pradesh, Goa, etc. to ensure the region's development.
- ❖ The *northeastern States* like Assam, Nagaland, Arunachal Pradesh, Mizoram, etc. have been given special provisions largely for developing a *sizeable indigenous tribal population* with a distinct history and culture, which they wish to retain. However, these provisions have not been able to stem alienation and insurgency in parts of the region.
- ❖ Special provisions also exist for *hilly States* like Himachal Pradesh, etc.



- ❖ The Indian Constitution contains special provisions for 12 States i.e. Gujarat, Maharashtra, Goa, Andhra Pradesh, Telangana, Karnataka, Sikkim, Assam, Arunachal Pradesh, Nagaland, Manipur, and Mizoram.

Jammu and Kashmir:

- ❖ Jammu and Kashmir has been provided special provision by the Constitution of India under Article 370.
- ❖ Jammu and Kashmir was one of the large princely states, which had the option of joining India or Pakistan at the time of Independence.
- ❖ Immediately after Independence, Pakistan and India fought a war over Kashmir. Under such circumstances, the Maharaja of Kashmir acceded to the Indian Union.
- ❖ Most of the Muslim-majority States joined Pakistan but Jammu and Kashmir was an exception. Under these circumstances, it was given much greater autonomy by the Constitution under Article 370.
- ❖ According to Article 370:
 - the concurrence or consent of the Jammu and Kashmir Government is required for making any laws in matters mentioned in the Union (except for defense, communication, currency, and external affairs) and Concurrent lists. This is different from the position of other States.
 - An emergency on the ground of internal disturbances and financial emergency cannot be declared in Jammu and Kashmir without the concurrence of the State.
 - The Jammu and Kashmir Reorganisation Act, 2019 has revoked the special status of Jammu and Kashmir and bifurcated it into two Union Territories i.e. Jammu and Kashmir and Ladakh.



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